



REPUBLIC OF KENYA

PUBLIC SERVICE COMMISSION

Human Resource Policies and Procedures Manual for the Public Service

2024

PRINTED BY THE GOVERNMENT PRINTER, NAIROBI

TABLE OF CONTENTS

TABLE OF CONTENTS	i
PREAMBLE	xiii
PART I: GOVERNANCE STRUCTURE AND OFFICIAL COMMUNICATION	1
SECTION A.....	1
INSTITUTIONAL FRAMEWORK.....	1
Values and Principles of Public Service.....	1
National Values and Principles of Governance	2
Functions of State Departments.....	2
Role of the Chief of Staff and Head of the Public Service.....	2
Role of Cabinet Secretaries.....	3
Role of Principal Secretaries.....	3
Role of the Attorney General	4
Functions and Powers of the Public Service Commission.....	4
Communication with the Public Service Commission.....	5
Notification of the Commission's Decisions.....	5
Role of the Ministry Responsible for Public Service	5
Human Resource Management Advisory and Employee Performance Management Committees.....	5
GOVERNMENT COMMUNICATION	9
Forms of Correspondence.....	9
Communication by public officers.....	10
Correspondence with Other Governments or Administrations.....	10
Classified Correspondence	10
Reports and Memoranda for the Cabinet	11
Publicity/Broadcasts.....	11
Use of modern means of communication	11
Use of Password	11
Annual Reports.....	12
Research Approvals.....	13
A.32 Publications for Diplomatic and Other Representatives Abroad	13
Kenya Gazette	13
Official Seals and Stamps	13
Disposal of Records.....	14
PART II: RECRUITMENT, SELECTION, APPOINTMENT AND TRANSFERS	15
.....	15
SECTION B.....	15
RECRUITMENT AND APPOINTMENT	15
Reporting of Vacancies.....	15
Advertisement of Vacant Posts under Delegated Authority	16
Recruitment	16
Application for Employment	16
Offer of Appointment	16

Categories of Appointment	17
Appointment Procedures	17
Letters of Appointment.....	17
Date of Appointment.....	17
Appointment documents.....	18
Next of Kin	18
Record of Previous Employment	18
Medical Examination.....	19
Appointment on Probation to Pensionable Establishment.....	19
Admission to Pensionable Establishment	20
Confirmation in Appointment and Admission to Pensionable Establishment.....	20
Procedure for Confirmation in Appointment	20
Appointment on Contract Terms	21
Re-designation	23
Non-Discrimination in Employment.....	24
Rights and Privileges of Persons with Disabilities	24
Recruitment of Non-Citizens.....	24
PROMOTIONS	25
Promotions dependent on examinations	25
Promotion to posts in common establishment	25
Promotion on merit.....	25
Dates of Promotion	26
Seniority	27
Release of Officer(s) Selected for Promotion in State Departments ..	27
TRANSFERS.....	28
Transfer from One State Department to another	28
Transfer of Service.....	28
Secondment	28
PART III: TERMS AND CONDITIONS OF SERVICE	30
SECTION C.....	30
SALARY AND ALLOWANCES.....	30
Payment of Salary.....	30
Salary Structure.....	30
Annual Incremental Dates	31
Determination of Salary on Promotion/Upgrading.....	31
Determination of Salary of an officer Transferred from Another Administration	32
Advance of Salary	33
Allowances	34
House Allowance	34
Commuter Allowance	34
Hardship Allowance.....	34

Leave Allowance	34
Entertainment Allowance	35
Extraneous Allowance	35
Acting appointment.....	35
Special Duty Allowance.....	37
Daily Subsistence allowance (Local Travel)	38
Meal Allowance	39
Daily Subsistence Allowance while Travelling on Duty Outside Kenya	39
Overtime Allowance	40
Transfer Allowance	40
Field Allowance.....	41
Baggage Allowance.....	41
Other Allowances.....	42
SECTION D BENEFITS	43
Introduction	43
Allocation of Government Houses.....	43
Occupation of Government Houses	43
Government Mortgage Scheme.....	44
MEDICAL BENEFITS	45
Introduction	45
Medical Treatment outside Kenya.....	45
Medical Ex-gratia Assistance	45
Car Loan Scheme.....	46
Eligibility for Transport.....	46
Travelling by Public Service Transport	46
Travelling by Government Vehicles.....	46
Use of Personal Vehicle	46
Travelling by Air.....	46
Travelling for Interview	47
Travelling on Retirement	47
Transport Facilities on Bereavement.....	47
EXIT FROM THE SERVICE AND TERMINAL BENEFITS	48
Resignation	48
Termination of Appointment	49
Mandatory Retirement Age.....	49
Retirement under the '50 Year' Rule.....	49
Retirement on Medical Grounds	50
Retirement on Abolition/Re-organization of Office	51
Dismissal.....	51
Death	51
National Social Security Fund (NSSF) Benefits.....	51
Widows' and Children Pensions Scheme	52
Refund of Contributions.....	52

Conditions Attached to Payment of Benefits.....	53
Definitions of Terms used in Pensions-	53
Eligibility for Pension/Gratuity	54
Reporting of Retirements to Respective Pension Schemes.....	55
Retirement Benefits Payable Under the Pensions Act	55
Transfers and Secondments of Pensionable Officers	56
Public Service Superannuation Scheme.....	56
Objectives of the Scheme	57
Rates of Contribution	57
Vesting Period	57
Transition Modalities	58
Management of the Scheme	58
Certificate of Service	61
Testimonials and Letters of Commendation	61
SECTION E LEAVE.....	62
Introduction	62
Categories of Leave	62
Annual Leave.....	62
Commutation of Leave	64
Maternity Leave	65
Child Adoption Leave.....	65
Surrogacy	66
Paternity Leave.....	66
Unpaid Leave	66
Study Leave	67
Compassionate Leave.....	67
Special Leave for Sportspersons	67
Sick Leave.....	67
Terminal Leave.....	68
Leave of Absence	69
Festival Holidays	70
Application for Leave.....	70
SECTION F.....	71
Introduction	71
Guidelines to General Safety	71
Emergency Preparedness.....	71
Fire Precautions	72
Fire Prevention	72
Notification of Fires	74
Medical Examination	75
Provision of Protective Equipment and Clothing.....	75
Safe Use of Potentially Dangerous Equipment.....	75
Compensation to Government Officers In case of Injury or Death....	76

Reporting of Accident.....	76
Approval and Distribution of Compensation.....	77
Recourse to Court	77
Compensation Payable During Sick Leave Under WIBA	78
Source of Compensation Funds.....	78
Reporting Injury, Serious Illness or Death	78
Group Personal Accident Policy	78
Guidance, Counseling and HIV/AIDS Management in the Public Service	80
Counseling Services	80
HIV/AIDS Support Programme.....	80
Fighting Stigma and Discrimination	81
Screening for Purposes of Employment/Recruitment.....	81
Continuation of Employment.....	81
Drug and Substances Abuse	82
Employee Welfare and Wellness.....	82
PART IV : PERFORMANCE MANAGEMENT, TRAINING AND DEVELOPMENT.....	83
SECTION G	83
PERFORMANCE MANAGEMENT	83
Introduction	83
Strategic Planning	83
Performance Contracting	83
Staff Performance Appraisal System.....	84
Objectives of Performance Appraisal.....	84
Scope of Application.....	85
Work Planning and Setting of Performance Targets.....	85
Appraisal Period.....	85
Staff Performance Appraisal Process.....	86
Continuous Performance Appraisal	86
Performance Measurement	86
Mid-Year Performance Review	86
End of Year Appraisal Process.....	87
Rewards and Sanctions	87
Types of Rewards and Sanctions.....	88
Employee Performance Management Committee (EPMC)	88
Rules of Conduct for the Employee Performance Management Committee	89
EPMC Recommendations	89
Appeals on Staff Performance Appraisal process	89
SECTION H	90
TRAINING AND DEVELOPMENT	90
Introduction	90

Management and Co-ordination of Training	91
Training Needs Assessment	91
Training Programmes	92
Training Levy.....	93
Induction Training	93
Eligibility for Training	94
Annual Training Policy Statement.....	94
Nomination and Approval for Government Training.....	94
Course Approval.....	95
Undergraduate Training	95
Masters Programmes.....	96
PhD Programmes.....	96
Authentication of academic and professional certificates in the public service	97
Training revolving fund.....	98
Training Bond	99
Skills Inventory	100
Allowances Payable to Government Sponsored Trainees	100
Incidental Expenses	101
Annual Leave.....	101
Donor Funded Courses.....	101
Workshops, Retreats and Conferences.....	101
Reimbursement of Tuition and Examination Fees	102
Industrial Attachment.....	102
Internship	103
PART V: CODE OF CONDUCT, DISCIPLINARY CONTROL AND LABOUR RELATIONS	104
SECTION J	104
CODE OF CONDUCT	104
Office Hours	105
(i) Nairobi and all other Regions	105
(ii) Coastal and Northern Kenya	105
Public Holidays	105
Rule of law	106
Public trust.....	106
Performance of duties	106
Professionalism.....	106
Financial integrity	106
Pecuniary Embarrassment	106
Moral and ethical requirements	107
Gifts or benefits in kind	107
Wrongful or unlawful acquisition of property	108
Conflict of interest	108

Acting for foreigners.....	110
Care of property	110
Misuse of official information	110
Falsification of records	110
Political neutrality	110
Impartiality	110
Collections and Harambees.....	110
Conduct of private affairs	111
Bullying.....	111
Sexual Harassment	111
Nepotism.....	112
Acting through others	112
Reporting improper orders.....	112
Declaration of Income, Assets and Liabilities	112
Uniforms for Officers.....	113
Dress Code.....	113
SECTION K DISCIPLINARY CONTROL.....	114
Disciplinary Powers	114
Disciplinary procedureGeneral provisions.....	115
Conduct of investigations.....	118
Disciplinary Hearing	119
Interdiction	120
Suspension.....	120
Absence from Duty without leave or reasonable orlawful cause	121
Appeals.....	121
Reviews	122
Defence of Officers in Criminal and Civil Suits	122
SECTION L.....	124
LABOUR RELATIONS.....	124
Introduction	124
Union Membership.....	124
Recovery of Union Dues	125
Dispute Resolution	125
Employee Participation in Strikes.....	125
Institutional Framework for negotiation	126

DEFINITION OF TERMS		
(i)	Accounting Officer	A public officer appointed to take full responsibility on the finances, assets and liabilities of the respective MDA.
(ii)	Authorized Officer	A Public Officer to whom the Commission has delegated the human resource management function in a ministry/state department or agency
(iii)	Basic Salary	An officer's salary excluding allowances.
(iv)	Bondee	An employee who is serving a training bond obligation
(v)	Cabinet Secretary	A state officer responsible for policy direction, coordination and overall supervision of a Ministry
	Casual Employee	A person whose terms of engagement provide for his payment at the end of each day and who is not engaged for a longer period than twenty-four hours at a time
(vi)	Children	The biological offsprings or legally adopted children under the age of twenty five (25) years who are unmarried and are wholly dependent on the officer. For purpose of records, the names of the children must be declared at the time of birth or adoption if it occurs during employment in the Civil Service.

		Copies of birth certificates or legal adoption papers will be required in either case.
(vii)	Civil Servants	These are employees of the Public Service Commission and the County Governments deployed in MDAs.
(viii)	Commission	Refers to the Public Service Commission
(ix)	County	A unit of devolved Government in Kenya
(x)	County Governor	The head of a county government elected in accordance with Article 180 of the Constitution .
(xi)	Delegated Authority	The powers of the Commission that have been assigned to any one or more of its members, officer, body or Authority to exercise on its behalf.
(xii)	Immediate Family	Includes the officer, spouse(s), children, the officer's parents and siblings.
(xiii)	Leave Year	Refers to the period commencing 1 st July to 30 th June of each financial year.
(xiv)	Next-of-Kin	The name of the person provided by the officer for the purpose of contact during emergency and in case of death.

(xv)	Nuclear Family	Refers to officer, spouse and children.
(xvi)	Parliament	Refers to the National Assembly and the Senate.
(xvii)	Pro-rata	Is the Computation of benefits for the period served in relation to the full term entitlement.
(xviii)	Public Service	The collectivity of all individuals, other than State officers, performing a function within a State organ
(xix)	Principal Secretary	This is the Administrative head of a State Department.
(xx)	Reimbursable Allowances	Refers to those allowances where an Officer gets reimbursement on the expenditure incurred in the course of duty.
(xxi)	Remunerative Allowances	Refers to those allowances paid to an officer, in addition to salary as a form of Compensation for additional responsibilities.
(xxii)	Spouse	Refers to the legal marriage partner of an officer specified

		under the Marriage Act or in accordance with the relevant Customary Law.
(xxiii)	Secretary to the Cabinet	Means State Officer in charge of Cabinet Affairs.
(xxiv)	State Officer	Refers to a person holding a State Office.
(xxv)	Surety	Refers to a person who formally accepts responsibility to locate a bondee and/or redeem the bond obligation of a bondee who defaults or appears in a court of law in respect of the same.
(xxvi)	Tour of Service	Refers to the period of employment contract in the Civil Service awarded to a Kenyan Civil Servant deployed to serve in a foreign mission employee.
(xxvii)	Training Bond	Refers to formal agreement between the Government of Kenya and its employees who are selected for approved training that oblige them to serve in the Public Service for a specific period of time on completion of training.
(xxviii)	Vesting Period	Refers to ownership of benefits built up in a Scheme for a member including what has been contributed by the employee and returns thereof.

This Human Resource Policies and Procedures Manual for the Public Service is formulated with due regard to gender; thus where reference is made either to 'he' or 'she' only, it shall be construed to mean and include reference to both 'he' and 'she' and where reference is made to spouse, it shall be construed to mean and include reference to both 'husband' and 'wife' where applicable and vice versa.

PREAMBLE

Human resource management plays a critical role in supporting not only the organization, but also workers, to navigate through macro-level events that impact the political social, technological, economic, environmental and legal operating environment. We suggest a novel framework that situates and expands the role of the Human Resources (HR) function in contemporary organizations by proposing to raise this role to be externally facing, proactively monitoring the macro-environment for significant events, anticipating any significant changes for workers, and designing interventions to minimize any negative impact.

The current Human Resource Policies and Procedures Manual was last reviewed in 2016. Since then, fundamental changes, brought about by the Constitution have been implemented both in the structure of the Public Service and the management of the Human Resource. This review has addressed and aligned new practices with the legislative changes and the dynamics of the future of work, post-Covid 19, especially in embracing technology in public service. It has reviewed and introduced better workplace tools and processes, and governance structures to make it easier for public servants to work effectively.

The Human Resource Policies and Procedures Manual provide guidelines in the management and development of human resource capacity towards the achievement of various national goals and objectives. The manual has been reviewed to provide guidelines for effective Human Resource Management practices such as training, career planning, compensation, performance management and rewards, job definition and employee participation in maintaining the productivity of employees. It has also addressed issues that are intended to enhance efficiency in the conduct of Human Resource Management practices to enable public officers continue to deliver world-class services and transform the way government operates, from front-end to back-office, in a modern and efficient way. Further, the guidelines herein shall impact in development of the right skills and culture among public service employees and leaders, and puts together policy and delivery direction that shall enable services to be delivered in a learning and iterative environment, focused on outcomes for citizens.

The Manual incorporates provisions of the Constitution, Labour Laws and other Legislation that govern various aspects of industrial relations in the Public Service. The Manual is also anchored on other policies and guidelines governing the management of the Public

Service. It provides the basis for human resource policies and regulations in the wider Public Service.

It is important to note that these policies are not exhaustive of all the rules and regulations governing Public officers in their day to day activities. They should therefore, be read alongside any other relevant provisions of the Constitution, legislations and guidelines, as applicable, for better interpretation and application.

The policies will apply to the National Government and replicated in other Government Agencies in the wider public service as a minimum norm and standard and will be updated from time to time to reflect policy changes affecting human resource management and development in the Service. County Public Services may customize the policies for their operations.

Where clarification on any of these regulations is required, it should be sought from the Secretary/Chief Executive Officer, Public Service Commission.

Anthony Muchiri, CBS
Chairperson,
Public Service Commission,
NAIROBI.

PART I: GOVERNANCE STRUCTURE AND OFFICIAL COMMUNICATION

This part comprises the institutional framework for human resource management in the public service and official communication.

SECTION A

INSTITUTIONAL FRAMEWORK

A.1 **Section A** provides a summary of matters related to the administration and management of Government. It shall be read alongside the Constitution of Kenya, the Public Service Commission Act and Regulations and other legal statutes.

Values and Principles of Public Service

A.2 (1) The Public Service shall be responsible for implementation of Government policies and programmes as guided by the following values and principles of public service as stipulated in Article 232 of the Constitution:

- i. high standards of professional ethics;
- ii. efficient, effective and economic use of resources;
- iii. responsive, prompt, effective, impartial and equitable provision of services;
- iv. involvement of the people in the process of policy making;
- v. accountability for administrative acts;
- vi. transparency and provision to the public of timely, accurate information;
- vii. fair competition and merit as the basis of appointments and promotions;
- viii. representation of Kenya's diverse communities; and
- ix. affording adequate and equal opportunities for appointment, training and advancement, at all levels of the public service, of:
 - (a) men and women;
 - (b) the members of all ethnic groups; and
 - (c) persons with disabilities.

(2) The values and principles of public service apply to public service in:-

- i. all State organs in both levels of government; and
- ii. all State corporations.

National Values and Principles of Governance

A.3 Public Service is also bound by the national values and principles of governance as stipulated in Article 10 of the Constitution. These include:-

- i. Patriotism, national unity, sharing and devolution of power, the rule of law, democracy and participation of the people;
- ii. Human dignity, equity, social justice, inclusiveness, equality, human rights, non-discrimination and protection of the marginalised;
- iii. Good governance, integrity, transparency and accountability; and
- iv. Sustainable development.

Functions of State Departments

A.4 The allocation of functions to State Departments shall be as set out in Presidential Circulars/Executive Orders issued to the Service from time to time.

Role of the Chief of Staff and Head of the Public Service

A.5 (1) The Chief of Staff and Head of the Public Service will be responsible for:

- i. General efficiency of the Public Service, through promotion of ethics, good governance, efficiency and effectiveness in the provision of public services through deployment of right skills, values and leadership;
- ii. Co-ordination of the activities of public service in facilitating organization and efficient execution of Government Business;
- iii. Overall organization of the machinery for the execution of the Government policies;
- iv. Ensuring that all agencies of Government are adequately staffed for the performance of their functions; and
- v. Overseeing the administration of all state corporations and established public entities, as well as facilitating resolution

of their operational challenges and policy concerns.

(2) All Principal Secretaries have a duty to keep the Chief of Staff and Head of the Public Service informed of staffing, operational and major policy issues in their Ministries.

Role of Cabinet Secretaries

A.6 Cabinet Secretaries are accountable individually and collectively, to the President for the exercise of their powers and the performance of their functions concerning a matter for which the Cabinet Secretary is responsible. These include:

- i. Strategic policy formulation and direction of the Ministry to which they are assigned;
- ii. being the link between the Ministry and the President or Parliament as the case may be; and
- iii. Steering the Strategic Human Resource Management matters in the Ministry.

Role of Principal Secretaries

A.7 (1) The Principal Secretary shall be responsible to the Cabinet Secretary for:

- i. the exercise of the delegated authority;
- ii. the day to day operations of the Ministry/State Department;
- iii. the administration and management of Human Resource functions in the department;
- iv. co-ordination of the Ministry/department's performance management;
- v. advising the Cabinet Secretary on Human Resource matters;
- vi. constituting Human Resource Management Advisory Committee (HRMAC) and Employee Performance Management Committee (EPMC);
- vii. overseeing implementation of programmes;
- viii. efficient utilization of funds and other public resources placed at their disposal; and
- ix. performing any other HR function as directed by the relevant authority.

(2) Principal Secretaries should always seek guidance and concurrence from their respective Cabinet Secretaries on important policy matters.

(3) Principal Secretaries should at all times seek guidance and concurrence from the Commission on all matters relating to human resource management in their dockets.

Role of the Attorney General

A.8 The Attorney General is the principal legal advisor to the Government. His responsibilities include ensuring that Ministries/State Departments and other public entities are given appropriate legal advice as per the Office of the Attorney General Act, 2012.

Functions and Powers of the Public Service Commission

A.9 (1) In accordance with the Constitution, the Commission shall:

- i. Establish and abolish offices in the Public Service, appoint persons to hold or act in those offices and confirm appointments;
- ii. Exercise disciplinary control over and remove persons holding or acting in those offices;
- iii. Promote the values and principles of Public Service;
- iv. Investigate, monitor and evaluate the organization, administration and personnel practices of the Public Service;
- v. Ensure that the Public Service is efficient and effective;
- vi. Develop human resources in the Public Service;
- vii. Review and make recommendations to the National Government in respect of conditions of service, code of conduct and qualifications of officers in the public service;
- viii. Evaluate and report to the President and Parliament on the extent to which the National values and principles of Governance as well as the values and principles of Public Service are complied with in the Public Service;
- ix. Hear and determine appeals in respect of County Governments' Public Service; and
- x. Perform any other functions and exercise any other powers conferred by National legislation.

(2) The Public Service Commission may also recommend to the President the establishment of an office in the Public Service in accordance with Article 132(4)(a) of the Constitution.

(3) The Public Service Commission shall also whenever required by the President, advise the President and Parliament on any matter affecting the Public Service.

(4) The Commission may delegate in writing, with or without conditions, any of its functions to any one or more of its members or to any officer, body or authority in the Public Service.

Communication with the Public Service Commission

A.10 (1) All communication with the Commission shall be addressed to the Secretary, Public Service Commission.

(2) Serving officers may communicate with the Commission only in exceptional cases and should channel their letters through their respective Authorized Officers with an advance copy to the Commission.

Notification of the Commission's Decisions

A.11 (1) The decisions of the Commission to State Departments in respect of all cases will be communicated to the respective Authorized Officers in writing by the Secretary to the Commission.

(2) The decisions of the Commission to County Governments in respect of appeals will be communicated to the respective County Public Service Boards in writing by the Secretary to the Commission.

Role of the Ministry Responsible for Public Service

A.12 The Public Service Commission may delegate some of its functions to the Authorized Officer in the Ministry responsible for Public Service as may be determined and through a delegation instrument and/or Executive Orders issued from time to time.

Human Resource Management Advisory and Employee Performance Management Committees-

A.13 (1) To ensure effective human resource management, each Ministry/State Department/Agency shall constitute a Human Resource Management Advisory

Committee (HRMAC) and Employee Performance Management Committee (EPMC).

(2) The committees shall have a membership not exceeding nine (9) and the quorum shall be not less than two-thirds (2/3) of the membership. The HRMAC shall meet at least once in each month, while the EPMC shall meet at least once in each quarter.

The decisions of the Committees shall be by consensus or majority vote of the members present.

A.14 (1) The HRMAC shall consist of the following members:

(a) Secretary/Director of Administration – Chairperson

(The Deputy Head of Administration not below the level of CSG 6 as Alternate);

(b) Director Human Resource Management and Development – Secretary

(The Deputy Head of Human Resource Management and Development not below CSG 6 as Alternate);

(c) Seven other members at the level of CSG 7 and above representing core departments.

(2) The Committee may co-opt such members, in writing, as necessary from time to time with the approval of the Authorized Officer.

A.15 The functions of the Human Resource Management Advisory Committees entail making recommendations to the Authorized Officer regarding: -

- i. Recruitment, selection and appointment;
- ii. Promotions;
- iii. Confirmation in appointment;
- iv. Training and Development;
- v. Induction of Staff;
- vi. Training Impact Assessment;
- vii. Management of skills audit and inventory;
- viii. Establishment and Complement control;
- ix. Payroll management;
- x. Deployment;
- xi. Promotion and implementation of values and Principles of Public Service and ensuring compliance;
- xii. Administration of biennial and final declaration of income, assets and liabilities and the public

- service code of conduct and ethics for officers in CSG 8 and below;
- xiii. Quarterly reporting on initial and final declaration of income, assets and liabilities for all public officers;
 - xiv. Quarterly reports on the status of implementation of recommendations contained in the annual values and principles report;
 - xv. Conduct and reporting on investigations;
 - xvi. Recommendation for waiver of requirements of the career progression guidelines;
 - xvii. Recommendation for review of grading and organization structures;
 - xviii. Recommendation for review of career guidelines;
 - xix. Recommendation for secondments, leave of absence, unpaid leave and transfer of service;
 - xx. Recommendation for retirement under 50 years rule;
 - xxi. Recommendation for retirement on medical grounds;
 - xxii. Recommendation for re-designation;
 - xxiii. Recommendation for engagement and renewal of contracts;
 - xxiv. Recommendation for Public Service Excellence Awards;
 - xxv. Discipline Control;
 - xxvi. Pension Management;
 - xxvii. Staff welfare, health and safety; and
 - xxviii. Employee Mental wellness

A.16 The EPMC shall consist of the following members:

- i. Secretary/Director of Administration, or
Head of Administration, not below CSG 6 as – Chairperson
- ii. Heads of Departments, with members being not below CSG 7;
- iii. Director of Human Resource Management and Development, or alternate not below CSG 6 - as Secretary

A.17 The Functions of the Employee Performance Management Committee (EPMC) shall be as follows:

- i. Undertake quarterly review of implementation of Strategic Plans and Performance Contracts;
- ii. Ensure linkage between Institutional Performance Contract and Performance Appraisal System;
- iii. Ensure that the overall assessment of employee performance is within the context of institutional performance as evaluated through Staff Performance Appraisal System;
- iv. Ensure that the performance of all officers is evaluated and feedback on performance is relayed in writing at the end of the year;
- v. Hold quarterly performance review meetings;
- vi. Consider performance reports from various departments within the Ministry/State Department/Agency and make recommendations for improvement;
- vii. Review cases of appeals on appraisal ratings between supervisors and appraisees;
- viii. Make recommendations to the Authorized Officer on the application of Rewards or Sanctions;
- ix. Develop and implement the internal monitoring and evaluation and reporting system; and
- x. Ensure that the integrity and credibility of the overall process of rewards and sanction system is safeguarded and maintained at all times.

A.18 Rules of Conduct for the Employee Performance Management Committee:

- i. Members of the Committee shall be guided by the provisions of the Regulations in the performance of their functions;
- ii. Members of the Committee shall be expected to perform their duties with diligence, integrity, impartiality and confidentiality; and

- iii. Members of the Committee will not discuss or participate in making recommendations in respect of their own performance report(s).
- iv. The performance reports for members of the committee shall only be considered by the Authorized officers in consultation with their supervisors, where applicable.

GOVERNMENT COMMUNICATION

Introduction

A.19 This Section spells out the basic rules for effective communication through correspondence and other means. It provides for expeditious treatment of communication within the prescribed rules and gives a brief guide for use of a variety of other communication media.

Forms of Correspondence

A.20 (1) Great importance is attached to the expeditious treatment of all communication received by the Government. Every communication requiring a response but which cannot be answered at once should be acknowledged promptly on receipt. The necessary consultations should then be finalized and appropriate reply dispatched in not more than seven (7) days unless it can genuinely be established that such consultations require a longer period.

(2) Correspondence within the Service should be as concise as possible, indicating the general background to the issue and advice or decision sought on the issue.

(3) Each correspondence should be confined as far as possible to a single subject under an appropriate and summarized heading. Invariably, the reference number and date of the last communication, if any, from the writer and from the person addressed on the same subject should be given.

(4) Enclosures in foreign languages should be accompanied by a certified translation or in the case of documents of minor importance, by a summary of the contents.

(5) Documents received in foreign languages should be referred to the State Department responsible for Foreign Affairs for official translation, where necessary.

(6) Any information relating to Government business should not be communicated to the general

public without the sanction of the Authorized Officer of the State Department concerned.

(7) When decisions of the Government have to be conveyed to non-governmental bodies or to members of the public, they should be communicated as the decisions of the Government, and not as those of an individual officer or Department.

(8) The responsibility of ensuring that correspondence reaches its destination rests with the sender.

Communication by public officers

A.21 (1) a public officer shall communicate to his Authorized Officer through his head of department.

(2) All communication to the Public Service Commission shall be through his Authorized Officer.

(3) An officer is not allowed to take extracts or make copies of minutes or correspondence, unless such correspondence is expressly addressed to the officer personally.

Correspondence with Other Governments or Administrations

A.22 Any correspondence relating to relations between Kenya Government and other administration shall be governed by existing bilateral arrangements and other protocols and shall be referred to the State Department responsible for Foreign Affairs for guidance.

Classified Correspondence

A.23 (1) The Government of Kenya Security Manual contains instructions regarding classified correspondence.

(2) The appropriate classification should be clearly marked at the top and bottom of every page of all classified documents.

(3) Authorized Officers will be held responsible for ensuring that the most careful attention is paid to security matters in all offices under their control. The attention of all officers having access to classified information should be particularly drawn to the Security Manual regularly.

(4) Officers handling classified information should be vetted and informed about the consequences of any action that infringes the set guidelines.

Reports and Memoranda for the Cabinet

A.24 (1) A memorandum intended for consideration of the Cabinet must be signed by the Cabinet Secretary concerned and submitted in original to reach the Secretary to the Cabinet at least seven days before the meeting at which it is to be considered.

(2) Cabinet memoranda shall be prepared in accordance with the guidelines issued by the Office of the Chief of Staff and Head of the Public Service.

Publicity/Broadcasts

A.25 (1) Cabinet Secretaries and Principal Secretaries shall liaise with their respective department of Public Communications for any information they wish to communicate to the public through the media.

(2) The department of public communications will assist in the preparation of the material for publicity in a form most suitable to the media but it will be the responsibility of the Ministry, State Department and Agency concerned to ensure accuracy before any material is issued.

(3) A public officer shall not issue statement(s) to the media on official matters without prior approval of the Authorized Officer.

Use of modern means of communication

A.26 (1) For faster communication, Ministries, State Departments and Agencies shall adopt modern means of Communication such as use of official telephones, organization websites, official email, official X, Facebook, Instagram and other social media handles.

(2) Authorized officers are required to designate officers to handle social media and to ensure responsible use of the same.

Use of Password

A.27 Where data is of a confidential nature and electronically stored, officers to whom passwords are entrusted shall take precautions to keep them confidential and safeguarded.

Annual Reports

A.28 (1) Annual reports are intended to be a record of work done during the period under review and should be concerned with assessing whether government projects and programmes, performance contracts, functions and activities have led to achievement of stated objectives or goals during the year in question. Annual Reports should therefore, include the following information:

- (i) A descriptive statement giving background information about a programme, function or an activity which should include elements such as cost, time span, size and schedule.
- (ii) A statement of intended objectives which were to be achieved after implementation;
- (iii) Environmental influences/factors during implementation;
- (iv) Outcomes/Impacts in relation to the originally stated objectives;
- (v) An analysis on whether the activity in question has been managed efficiently and effectively as planned; and
- (vi) Recommendations and suggestions for future improvement of Government policies and programmes.
- (vii) Where there are legal guidelines, authorized officers shall ensure they abide by the said guidelines in the preparation of the annual reports.

(2) Where feasible, Ministries shall publish one report covering the State Departments within the Ministry.

(3) The result of research or scientific investigations should be published in scientific journals, or as separate monographs, and not in annual reports. The reports should, however, include a reading list referring to these separate publications.

(4) Annual Reports will be prepared on the basis of a financial year.

(5) Annual Reports should not be published without prior sanction of the Authorized Officer concerned.

Research Approvals

A.29 An officer or a member of the public wishing to undertake research on any aspect of the Public Service in a Government establishment will be required to seek approval of the relevant Government agencies.

A.30 Such officer shall be required to apply for approval, as well as submit evidence of the nature of research, approvals from his training institution where the course is being undertaken, and the expected impact of the research on Government.

A.31 He will also be required to declare confidentiality clause, and ensure that information collected shall be utilized in accordance with the law relating to use of information and data management.

A.32 Publications for Diplomatic and Other Representatives Abroad

A.33 (1) All printed annual, statistical or other reports of general interest prepared in State Departments should be sent to the Government's diplomatic and other representatives abroad. To ensure that this is done, the addresses of diplomatic and other representatives abroad should be included in mailing lists.

(2) It is of great importance that diplomatic and other representatives abroad should be provided with up-to-date information for purposes of publicity and response.

Kenya Gazette

A.34 (1) All communication for publication in the Kenya Gazette should reach the Government Printer not later than Friday of the week before publication is desired.

(2) A State Department will be required to meet the cost of advertising in the Kenya Gazette.

Official Seals and Stamps

A.35 (1) The use of official seals and stamps in all Government offices must be confined strictly to official requirements.

(2) Applications by private persons for impressions of official seals shall not be allowed.

(3) The official seals and stamps must be kept under the custody of a senior officer designated for the purpose by the Authorized Officer who shall be accountable for their custody and appropriate use.

Disposal of Records

A.36 Disposal of official records shall be done in accordance with the provisions of the Official Secrets Act, the Public Archives and Documentation Services Act and Records Disposal Act and Personnel General Letter No.1 of 2008.

DRAFT

PART II: RECRUITMENT, SELECTION, APPOINTMENT AND TRANSFERS

This part addresses recruitment, selection, appointment, promotions and transfer matters in the public service.

SECTION B

Introduction

B.1 Section B provides rules governing recruitment, appointment, confirmation in appointment and promotion of public officers. It also provides guidelines on career progression, secondments and transfer of officers from one organization to another and other related matters.

RECRUITMENT AND APPOINTMENT

Human Resource Plans

B.2 (1) Every Ministry/State Department/Agency shall prepare Human Resource Plans to support achievement of goals and objectives in their Strategic plans. The plans shall be based on comprehensive job analysis and shall be reviewed every year to address emerging issues and needs.

(2) On the basis of these Human Resource plans, Ministries/State Departments/Agencies shall be required to develop annual recruitment plans which will be forwarded to the Public Service Commission, as applicable, at the beginning of each financial year to enable the Commission plan to fill the vacancies.

Reporting of Vacancies

B.3 (1) An Authorized Officer shall declare all vacant posts to the Public Service Commission in accordance with the procedures set out in the Commission's regulations.

(2) All vacancies at all levels shall be reported to the Commission for filling.

(3) Graduate entry grades shall be CSG 11/'J', CSG 10/'K', CSG 9/'L', CSG 8/'N', in accordance with the entry grade for each cadre, as may be approved by the Commission from time to time.

(4) Entry grades for Diploma cadres shall be CSG 12/'H" or as may be approved by the Commission from time to time.

(5) The Public Service Commission shall consider requests for approval of declaration of vacancies. Such requests shall be forwarded by the Authorized Officer

upon recommendation by the HRMAC.

(6) Recommendations for filling vacancies at CSG 8/'N' and above in an acting capacity shall be submitted to the Public Service Commission. Such recommendations should be accompanied by a draft indent and a seniority list of officers including an account of their performance.

Advertisement of Vacant Posts under Delegated Authority

B.4 (1) Where approval has been granted for filling of vacant posts under delegated authority, Ministries/State Departments/Agencies will advertise all the vacant posts in a manner that reaches the widest pool of potential applicants and allow for at least twenty one (21) days before closing the advert.

(2) The advert shall have the following details: the title of the post, number of vacancies, job description, person specification, proposed remuneration, terms of service, any considerations that may occasion disqualification, any consideration of affirmative action and an indication that only shortlisted and successful candidates will be contacted.

(3) The advert shall be delivered in soft copy to the Public Service Commission to be posted in its website.

Recruitment

B.5 Recruitment will be undertaken on the basis of fair competition and merit; representation of Kenya's diverse communities; adequate and equal opportunities to all gender, youth, members of all ethnic groups, persons with disabilities and marginalized/minorities.

Application for Employment

B.6 A candidate applying for employment shall do so online or manually by completing the prescribed PSC form, as the case may be.

Offer of Appointment

B.7 (1) Before taking up duty, a person appointed to any office will be issued with the appropriate letter of offer of appointment, as the case may be, by which he must signify acceptance of the offer, before he commences his duties.

(2) An offer of appointment may be withdrawn if the candidate does not accept in writing and take up the appointment within thirty (30) days of the offer.

Categories of Appointment

B.8 Appointments in the public service fall into Three categories:

- i. Pensionable;
- ii. Contract; and
- iii. Casual.

Appointment Procedures

B.9 (1) The procedures to be followed in filling vacancies within the scope of the Public Service Commission are set out in the Commission's Regulations which may be amended from time to time.

(2) The Public Service Commission may delegate its powers to appoint persons to hold office in the public service to an Authorized Officer as determined from time to time.

(3) Appointments made under the powers delegated by the Public Service Commission to Authorized Officer shall be processed through the appropriate State Department's Human Resource Management Advisory Committee in accordance with Public Service Commission Regulations and guidelines issued to the service from time to time.

Letters of Appointment

B.10 (1) An officer appointed to a position in the public service shall be issued with a letter of appointment specifying the terms and conditions of service.

(2) A letter of appointment shall state particulars of employment which should include the name and address of the employee, job title, date of commencement of appointment, terms and duration of employment, place of work, remuneration, terms and conditions of employment and terms of separation.

Date of Appointment

B.11 The date of appointment shall be the date of assumption of duty.

Appointment documents

B.12 (1) A candidate on first appointment shall provide the following documents:

- i. National identity card;
- ii. Birth Certificate;
- iii. KRA tax PIN;
- iv. Original academic and professional certificates duly authenticated by the issuing authority;
- v. Certificate of good conduct from the Directorate of Criminal Investigations;
- vi. Colour Passport size photograph; and
- vii. Bank account details.

(2) In addition, Authorized Officers shall ensure that all newly appointed officers are duly vetted as per the existing vetting policy and their professional and academic certificates are authenticated by the issuing institutions.

(3) The newly appointed officer shall make an initial declaration of income, assets and liabilities by completing the prescribed form.

Next of Kin

B.13 (1) An officer will be required to complete a next-of-kin form on first appointment and to update his next-of-kin records and other family details in the Government Human Resource Information System (GHRIS) whenever necessary.

(2) In addition an officer appointed to the permanent and pensionable establishment with membership to the Public Service Superannuation scheme shall complete the nomination of Beneficiaries form under the Scheme.

Record of Previous Employment

B.14 (1) It is the duty of the Authorized Officers, when making appointments under delegated authority, or in making recommendations for new appointments, to ensure that a candidate's record of previous employment is satisfactory in all respects.

(2) A candidate with a record of conviction should be employed only with the concurrence of the Public Service Commission.

(3) A candidate whose appointment in the Public Service had been terminated for any reason including resignation shall not be employed without prior approval of the Public Service Commission.

Medical Examination

B.15 All candidates on new appointment shall be required to undergo a medical examination by a Medical Officer who must complete the prescribed form. The purpose of the medical examination shall be to guide deployment of the employees.

Appointment on Probation to Pensionable Establishment

B.16 (1) Where vacancies exist in the pensionable establishment, candidates recruited to fill such vacancies shall be appointed on probation for a period of six (6) months.

(2) An officer appointed on probation to the pensionable establishment shall be regarded as being on assessment with a view to learning his work and being tested as to his suitability for it. It is the duty of the supervisor(s) to ensure that every officer on probation is given adequate opportunities to qualify for confirmation in appointment.

(3) At least one (1) month before the expiry of the probationary period, the Authorized Officer shall consider, in the light of the report(s) on the officer's performance, conduct and capabilities, whether or not the officer is suitable for confirmation.

(4) Where an officer's performance is unsatisfactory, he shall be informed in writing and the probation period may be extended for a period not exceeding three (3) months.

(5) Should the officer's performance fail to improve on expiry of the extended probation period, his probationary appointment shall be terminated in accordance with the Public Service Commission regulations, provided that the officer on probation is given adequate opportunities by the supervisor to enable him qualify for confirmation in appointment.

(6) Where an officer has served on terms other than pensionable and is subsequently appointed on a pensionable post, the terms of service may be translated to pensionable from the date the officer was placed on a pensionable post. The officer will, however, not be required to serve the probationary period in accordance with this guideline.

Admission to Pensionable Establishment

B.1 (1) Appointment to the pensionable establishment shall be restricted to officers who will be in a position to complete the qualifying period necessary for the grant of a pension in accordance with regulations of the respective pension scheme (Pensions Act Cap 189 or the Public Service Superannuation Scheme Act).

(2) For the purposes of this manual and for the officer's subsequent retirement from the service, the date of birth for a public officer is the date on his/her Certificate of Birth, pursuant to the provisions of the Births and Deaths Registration Act and the Evidence Act, declared by the Officer in the Application for employment form completed and signed by him/her prior to or immediately after first appointment.

(3) Where a variance in the date of birth of an officer, as contained in the officer's records, is detected or initiated by an officer for whatever reason, the same shall be forwarded to the Commission, together with all available records or evidence, for guidance.

Confirmation in Appointment and Admission to Pensionable Establishment

B.2 (1) An officer appointed to the Service in a pensionable post will be confirmed in appointment and admitted into the permanent and pensionable establishment on completion of probationary period of six (6) months satisfactory service.

(2) Service on contract terms may be taken into account in full as probationary service, in the case of an officer who has been appointed on probation to pensionable establishment without a break in service.

Procedure for Confirmation in Appointment

B.3 (1) The powers of confirmation of all officers in their appointments are delegated to Authorized Officers and will be exercised on the advice of the respective Human Resource Management Advisory Committee.

(2) Extension and termination of probationary appointments will be dealt with in accordance with the powers delegated by the Public Service Commission.

(3) The Supervisor will make a report on the officer's suitability for confirmation or otherwise at least one (1) month before the end of the probationary period and the officer be informed accordingly.

(4) Where the Supervisor fails to submit a report as required during the probationary period, the officer shall be confirmed in appointment.

(5) Where an officer's performance is unsatisfactory, he shall be informed in writing and the probation period may be extended by a further period not exceeding three (3) months.

(6) Should the officer's performance fail to improve on expiry of the extended probation period, his probationary appointment shall be terminated in accordance with the Public Service Commission regulations.

Appointment on Contract Terms

B.4 (1) Appointment on contract terms will be made under the following circumstances:

- i. Where persons to be appointed may not qualify for pension as per the respective pension scheme.
- ii. Where officers are appointed to serve on fixed term projects.
- iii. Appointments at senior levels as determined by the Public Service Commission from time to time.
- iv. Where capacity in the public service is lacking or specific skills are required.
- v. Personal staff of specified state officers as determined by the Commission from time to time.

(2) Appointment of officers on contract and renewal of such contracts shall be made on authority of the Public Service Commission. Authorized Officers shall report to the Commission all cases of appointment on contract terms which require renewal at least three (3) months before expiry of such contracts.

(3) An officer serving on contract, and whose services are still required, will be informed in writing at least three (3) months before the expiry of the contract. On acceptance of the offer, the case will be referred to the Commission for renewal.

(4) Contract appointments will be limited to a maximum period of three years, renewable for further period(s) subject to demonstrable performance and other terms of the contract.

B.5 Persons may be appointed on supernumerary contract terms under the following circumstances:

- (1) Personal staff of specified state officers in which case such staff shall serve for a period tied to the tenure of the specific state officers. In this case:
 - i. Where the tenure of a state officer lapses or where the state officer's service is terminated, the contract of such personal staff shall terminate automatically effective the date the state officer's service lapsed/was terminated; and
 - ii. Where a state officer is reassigned another state office and does not require the services of a person appointed as personal staff in the previous state office, the contract of such personal staff shall terminate effective the date the state officer is reassigned.
 - iii. Where a state officer is reassigned and requires the services of a person(s) appointed as personal staff in his previous docket, except Personal Assistant, Driver and Office and Secretary, the state officer shall submit a request to the Commission for consideration of reappointment and reassignment of a new designation(s), provided such persons possess the requirements for appointment (where applicable).
- (2) Where a state entity requires the services of a technical expert or a support service to enable deliver a particular mandate for a specified period.
- (3) Where the position does not exist in the authorized establishment of a public entity, and the appointment of such a person is viable in the interest of the public entity's service delivery, in the meantime.

Re-designation

B.6 (1) The Authorized Officer shall have power to re-designate officers at grades CSG 17/Job Group 'C' to CSG 12/ Job Group 'H', upon recommendation of HRMAC, subject to suitability interview for those moving to non-related cadres.

(2) Re-designation of staff at grades CSG 11/Job Group 'J' and above shall remain the responsibility of the Public Service Commission.

(3) Re-designation of officers shall be subject to the following conditions:

- i. Suitability interview for officers who are moving from one cadre to another;
- ii. Suitability Interview shall not apply for posts which fall within the same job family;
- iii. Shall be limited to positions in the first two (2) entry levels in any cadre;
- iv. Shall take effect from the date of the decision;
- v. Authorized Officers shall be required to consider promotion of qualified officers, in their current cadres, before processing re-designation requests;
- vi. Re-designation with continuous service will be allowed only for technical cadres whose job specifications are similar for both graduate and non-graduate officers; and
- vii. Shall be subject to existence of vacancies.

(4) The above notwithstanding, re-designations:

- i. Shall be dependent on an officers' demonstration of competence, merit and ability in performance; and
- ii. Beyond the common establishment grades may be considered by the Commission, under certain circumstances, on a case to case basis.

Non-Discrimination in Employment

B.7 (1) The Government shall promote equality of opportunity in employment and will not discriminate directly or indirectly against an employee on any grounds including race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, language or birth.

(2) The Government will endeavour to have a gender balanced Civil Service by continuously implementing the Constitutional requirement that not more than $\frac{2}{3}$ of positions in its establishment are filled by either gender.

Rights and Privileges of Persons with Disabilities

B.8 (1) Persons with disability shall be accorded equal opportunities for employment provided they have the necessary qualifications and are suitable for such employment.

(2) The government shall continuously implement the Constitutional requirement that at least five (5) percent of all appointments shall be for persons with disabilities.

(3) The Government shall provide facilities and effect such modification, whether physical, administrative or otherwise, in the workplace as may be reasonably required to accommodate persons with disabilities.

Recruitment of Non-Citizens

B.9 (1) It is the policy of the Government not to employ non-citizens where there are citizens with the appropriate qualifications. Recruitment of a non-citizen will require the authority of the Public Service Commission.

(2) The Commission will grant such authority once it has established that there are no local candidates with the requisite qualifications to meet the staffing needs. Appointment of non-citizens will only be on contract terms not exceeding three (3) years, renewable once.

(3) In applying for authority to recruit a non-citizen, an Authorized Officer should confirm that there is no citizen with the required qualifications available for appointment and the candidate has complied with the provisions of the Immigration Act and regulations.

(4) Recruitment from outside Kenya will also be subject to the following:-

- (i) that the candidate is prepared to accept an appointment on contract terms;
- (ii) that the Government of the country to which the candidate belongs raises no objection to his recruitment; and
- (iii) the candidate complies with the requirements of the Immigration Act.

(5) Non-citizens will not be eligible for appointment to State Offices with the exception of Judges and members of the Constitutional Commissions.

(6) Non-citizen employees are also subject to the policies and regulations applicable in the Public Service.

(7) It is the responsibility of the concerned State Department to facilitate acquisition of work permits for non-citizen employees.

PROMOTIONS

B.10 (1) Promotions in the public service will be based on qualifications and other requirements for appointment as stipulated in the career progression guidelines.

(2) In selecting candidates for promotion, regard shall be given to affording adequate and equal opportunities to all gender, youth, members of all ethnic groups, persons with disabilities and minorities.

Promotions dependent on examinations

B.11 (1) Where an officer is to be promoted upon satisfying requirements which include the passing of Commission's applicable examinations, the officer shall be promoted with effect from the date he or she passed the examination.

(2) The date of passing the examination is the date of release of results by the Commission.

Promotion to posts in common establishment

B.12 Promotion to posts within a common establishment shall cover the first two (2) grades at entry level or as determined by the Commission from time to time.

Promotion on merit

B.13 (1) An officer may be considered for promotion on merit where the officer demonstrates exceptional competencies, qualities and abilities, innovation, tangible creativity, demonstrable milestones, integrity, and

leadership.

(2) An officer may be considered for promotion on merit on recommendation by the relevant human resource management committee of the MDA and a request to the Commission by the authorized officer.

(3) An officer may be considered for promotion on merit where a vacancy exists: Provided that where no vacancy exists, the Commission may consider any other appropriate reward.

(4) All promotions on merit shall be made by the Commission.

Dates of Promotion

B.14 (1) The effective date of an officer's promotion will be the date of decision by the Public Service Commission or date of the HRMAC meeting.

(2) Promotion within common establishment posts shall be effective from the date the officer qualifies.

(3) If an officer has been appointed by the Public Service Commission to act in a post and is subsequently promoted to it without any interval between the appointment in an acting capacity and the date of his substantive promotion, the effective date of promotion will be the date on which he commenced to act.

Seniority

B.15 Seniority of public officers shall be determined as follows:

- (1) As between public officers of the same grade:
 - (i) by reference to the dates on which they respectively entered the grade.
 - (ii) if the public officers entered that grade on the same day, by reference to their seniority on the day immediately preceding that day.
 - (iii) if any public officers who entered the same grade on the same day did so by appointment and not by promotion, then seniority relative to each other shall be determined by reference to their respective ages.
- (2) As between public officers of different grades on the same salary scale or the same flat rate of salary, by reference to the dates on which they respectively entered their grades.
- (3) As between public officers of different grades on different salary scales, by reference to the maximum point on their salary scale, a flat rate of salary being regarded for this purpose as a salary scale with a maximum point equivalent to the flat rate.

Release of Officer(s) Selected for Promotion in State Departments

B.16 (1) An officer who is selected for promotion to a State Department other than that in which he is serving will be released to take up his appointment on transfer within a period of two (2) months from the date of the letter authorizing the promotion.

(2) If the promotion takes effect before his transfer, salary at the full rate attached to his new appointment will be payable by the receiving State Department from the date of his promotion as specified in the Public Service Commission letter.

(3) An officer who is promoted to a post in a different State Department while attending a training course will be transferred to that State Department from the date of his promotion and the new State Department will be required to pay his full emoluments.

(4) It is the responsibility of an officer to take up an appointment on promotion. An officer who fails to take

up a promotion in a different State Department shall be deemed to have declined the promotion which shall then be rescinded.

TRANSFERS

Transfer from One State Department to another

B.17 (1) The cadre administrators shall be responsible for transfer of common cadre staff across state departments in consultation with the relevant authorized officers and submit quarterly reports to the Commission.

(2) The Central Human Resource Management Postings Committee (CHRMPC) shall consider and recommend transfers of officers at CSG 7/Job Group 'P' and above for approval by the Public Service Commission.

Transfer of Service

B.18 (1) Transfers to and from the Civil Service and other Administrations or County Public Services shall be approved by the Public Service Commission.

(2) An officer shall be considered for transfer of service taking into account the existing guidelines, the terms of service specific to the officer and the provisions of applicable pension schemes as guided by the PSSS Act, RBA Act and specific trust deeds and rules of the pension scheme.

(3) An officer making application for appointment in another public entity should ensure his Authorized Officer is informed of such application, to enable smooth transfer of service in the event the officer is appointed following such application.

(4) If an officer is offered appointment in another administration, requests for his transfer shall be made to the Public Service Commission for approval.

(5) An officer who wishes to take up appointment in another public administration other than in accordance with the procedures set out in this manual, shall be required to resign from his position in the releasing public entity/service.

Secondment

B. 19 (1) Secondment of officers from the Public Service to other organizations is applicable to pensionable officers, for a period not exceeding three (3) years and may be renewable once.

(2) Secondment of officers to and from the mainstream civil service shall be undertaken by the Public Service Commission in consultation with the public service organization concerned.

(3) Requests for secondment shall be forwarded by the Authorized Officer to the Commission for approval before an officer takes up the secondment position.

(4) Secondment from one parastatal to another may be approved by the respective management Boards/councils.

(5) Secondment shall not apply to officers servicing on contract terms of service.

(6) To maintain an officer's pensionable status, the officer or the organization to which the officer is seconded will be required to make pension contribution at the prevailing rate. Where the organization pays the pension contribution for the officer, such amount shall be deducted from the officer's service gratuity.

(7) Officers on secondment will be paid their salaries and other allowances by the organizations in which they are deployed

(8) Secondments of officers in the Public Service will be regulated in the context of the relevant pension legislation.

(9) Officers on secondment to other organizations will be eligible for promotion in their parent organization(s) during the period of secondment.

(10) Secondment shall be applicable Where a public officer is appointed on contract to a public body or an international public body to which Kenya is a State party or has an existing bilateral agreement.

(11) An officer on secondment shall not be seconded to another organization during the period of the secondment

PART III: TERMS AND CONDITIONS OF SERVICE

Introduction

Terms and conditions of service are the rights and obligations of an employee and an employer in the employment contract. These include; salary, allowances, housing, transport, terminal benefits, leave, conducive work environment, and employee welfare and wellness.

The Government is committed to ensure that the terms and conditions of service in the public service are competitive in order to attract, motivate and retain a skilled and productive workforce that ensures quality service delivery. The Public Service Commission shall review and make recommendations to the National Government in respect of conditions of service in the public service.

SECTION C

SALARY AND ALLOWANCES

Payment of Salary

C.1 (1) On appointment, an officer will be paid full salary from the date of assumption of duty.

(2) All officers will be paid salary on monthly basis in Kenya currency through their respective bank accounts.

(3) Public officers shall not over-commit their salaries beyond two thirds ($\frac{2}{3}$) of their basic salaries. It is the responsibility of Heads of Human Resource departments to ensure compliance.

Salary Structure

C.2 (1) The Public Service salary structure will be based on the approved grading levels aligned to the various career guidelines.

(2) On first appointment, an officer will enter the salary structure at the minimum point of the respective salary scale. However, an officer maybe granted incremental credit for previous relevant experience at the rate of one increment for each complete year of approved experience provided the maximum salary of the Job Group assigned to the post is not exceeded. The grant of increments for relevant experience will be subject to the following conditions:

- i. Incremental credit will only be granted in respect of approved experience gained after acquiring the requisite minimum qualifications for the grade. In granting incremental credit, any period of service or experience stipulated as a basic requirement for appointment or promotion to a particular grade will be excluded;
- ii. Incremental credit will be granted only for previous approved experience in the type of work upon which an officer will be employed on his appointment to the particular grade;
- iii. Incremental credit may not be granted on appointment to promotional posts, i.e. posts to which an officer would not normally be appointed if he had joined the Government Service immediately after completing his education; and
- iv. Incremental credit may be granted for the number of years of aggregate approved experience. Only complete years will be taken into account, with periods in excess of full years being ignored.

Annual Incremental Dates

C.3 The first date of the month shall be an incremental date. An officer's annual incremental date shall be the first date of the month one is appointed.

Determination of Salary on Promotion/Upgrading

C.4 (1) Where the salary of an officer who is promoted to a higher Job Group is lower than the minimum of the salary scale attached to the higher Job Group, he shall enter the scale of the higher Job Group at the minimum point of the scale on the effective date of his promotion/upgrading. His future incremental date shall be the following year on the first date of the month in which the officer was promoted.

(2) Where the salary of an officer on the day preceding the effective date of his promotion is one point immediately below the minimum of the salary scale attached to his new Job Group and if that officer was earning an annual increment, he shall enter the scale at the minimum salary point attached to his new Job Group on the effective date of his promotion and retain his former incremental date.

(3) In the event that on the effective date of promotion or upgrading the officer was already within the higher salary scale but the officer had not attained the maximum point of his current salary scale, the officer will enter the higher salary scale, at the point next above his current salary on the effective date of his promotion or upgrading and the officer will retain his former incremental date, i.e. incremental date immediately prior to his promotion.

(4) If on the day preceding the effective date of his promotion he had attained the maximum point of the salary scale attached to his former Job Group and his service at that salary amounted to less than one year, he will enter the salary scale attached to his new Job Group from the effective date of his promotion at the point next above his salary. His future incremental date will be the 1st date of the month in which the officer was promoted.

(5) If on the effective day of the promotion an officer had served at the maximum salary point of his present salary scale for one (1) year but less than two (2) years the officer will enter the next salary point above his salary and will retain his former incremental date prior to reaching his maximum salary point.

(6) If on the effective day of the promotion an officer had served at the maximum salary point of his present salary scale for two years but less than three years, the officer will be granted two (2) years' salary increments at the point above his salary. His future incremental date will be the first (1st) date of the month in which he was promoted.

(7) If on the effective day of the promotion an officer had served at the maximum salary point of his present salary scale for three years and above, the officer will be granted three (3) salary increments at the point above his salary. His future incremental date will be the 1st date of the month in which he was promoted.

Determination of Salary of an officer Transferred from Another Administration

C.5 The salary of an officer who is transferred from another administration shall be determined by application of the provisions contained in this Manual.

(1) Any advertisement to fill vacancies in the Public Service shall provide for remuneration which shall

reflect the salary, allowances and other applicable benefits as the case may be.

- (2) Where an officer has been identified/head-hunted from other external Public Services, Private Sector, International/ Intergovernmental Organizations to enhance technical or professional support due to their skills and expertise in certain specific fields of competence which may not be readily available in the service, such persons shall serve on Fixed Term Contracts; and
- (3) Where positions have been filled competitively through an open competitive process, requests for retention of salary earned in the previous employment shall not be considered.

Advance of Salary

C.6 (1) An advance of not more than one month's salary may be granted by an Accounting Officer to an officer on permanent and pensionable or contract establishment when the officer, owing to circumstances beyond his control, is placed in a difficult financial position requiring assistance from the Government.

(2) In applying for the advance, the officer should explain in detail the circumstances leading to the situation which he could not have foreseen and therefore planned for.

(3) Officers posted to designated hardship areas on new appointment may be granted salary advance by the Accounting Officer, each such case being considered on its own merit.

(4) An advance under this regulation may be granted only when an officer has no other outstanding salary advance. In very exceptional circumstances, an

Accounting Officer may grant an advance of not more than two (2) months' salary in situations similar to those in paragraph (1) above if he is satisfied that the officer needs assistance in excess of one month's salary advance.

(5) The recovery period for salary advance will be limited to a period of not more than twelve (12) months. In respect of an officer who is due to leave the service before twelve (12) months, the advance must be fully recovered in equal installments within the remaining period of the officer's service in the Government.

Allowances

C.7 (1) Additional payments are made in form of allowances, either to reimburse an officer for the expenses incurred directly or indirectly in the execution of his duties, or to compensate him for services rendered over and above the normal job requirements.

(2) The following are the allowances that are currently applicable in the Service and the circumstances under which they are payable.

House Allowance

C.8 (1) All officers are eligible for house allowance applicable to their grades as stipulated in Government Circulars issued from time to time.

(2) Officers occupying institutional houses will pay rent equivalent to the value as shall be determined by the Ministry responsible for Housing or surrender their house allowance whichever is lower.

(3) An officer transferred to a designated hardship area in the interest of the service, may retain the house allowance applicable to his former station or draw house allowance applicable to his new station (hardship area) whichever is higher. However, this will not apply to an officer transferred on own request.

Commuter Allowance

C.9 (1) All officers in Job Group 'T' and below shall be eligible for commuter allowance where they are not provided with Government transport.

(2) The rates of the allowances will be determined by the Government from time to time.

(3) It will be an offence for an officer in receipt of commuter allowance to use Government vehicle from house to office and vice versa.

Hardship Allowance

C.10 Officers deployed in designated hardship areas shall be eligible for the applicable hardship allowance as determined by the government from time to time.

Leave Allowance

C.11 (1) All officers shall be eligible for leave allowance payable once a year. The rate of leave allowance will be determined by the Government from time to time.

(2) An officer stationed in any designated

hardship area and who proceeds on leave twice a year and takes not less than half ($\frac{1}{2}$) of his entitlement shall be eligible for full payment of leave allowance twice per year. If such an officer does not apply for leave he shall only draw leave allowance once a year.

Entertainment Allowance

C.12 Public officers in Job Groups 'T', 'U' and 'V' are from time to time required by the nature of their duties to provide hospitality and entertainment to official guests. To enable them meet such expenses, a non-accountable monthly entertainment allowance shall be paid as may be determined by the government from time to time.

Extraneous Allowance

C.13 Extraneous allowance shall be paid to officers who are called upon to undertake extra responsibilities in addition to their normal duties and therefore work over and above the official working hours on a continuous basis. The rates and eligibility for payment shall be determined by the Government from time to time.

Acting appointment

C.14 (1) When a post falls vacant a qualified employee at a lower grade may be appointed to perform the duties of the higher post in acting capacity, pending advertisement of the higher post.

(2) Acting appointment shall be for a period not exceeding six (6) months.

(3) When a post falls temporarily vacant due to the absence of the substantive holder, an acting appointment shall not be made unless the period of such absence exceeds thirty (30) days.

(4) A recommendation for an acting appointment for a period of thirty (30) days or less will be considered by the Public Service Commission for those cases where the law or regulations require that, in the absence of the substantive holder of a public officer, the function of that public office can only be exercised if another officer is appointed in an acting capacity.

(5) Acting appointments shall not be approved to take effect from a date earlier than one (1) month prior to the date on which the recommendation is approved by the Authorized Officer or the Public Service Commission as the case may be.

(6) Authorized Officers may approve acting

appointments at the grades CSG 7/Job Group 'P' and below on the recommendation of the respective Human Resource Management Advisory Committee (HRMAC).

(7) All recommendations for acting appointments in Job Group 'R' and above shall be submitted to the Commission for consideration, and shall be accompanied by a draft indent for advertisement of the vacancy.

(8) Payment of acting allowance shall be at the rate of twenty percent (20%) of substantive basic salary.

(9) Acting allowance will not be payable to an officer for more than six (6) months.

(10) An officer who is appointed to act in a higher post shall be eligible for the duration of his acting appointment for the travelling privileges, accommodation allowance, subsistence allowance or an extraneous allowance and entertainment allowance applicable to the post he is acting in. However, the officer shall not qualify for house allowance or other remunerative allowances applicable to the higher post.

(11) An officer shall not be appointed to act on a post that is more than two (2) grades higher than his substantive grade.

(12) Acting appointment and Allowance shall not be applicable for any post falling within the common establishment of a cadre.

(13) In all cases, an officer must be appointed to act in writing by the Authorized Officer or such other officer to whom the Authorized Officer may delegate such responsibility.

Special Duty Allowance

C.15 (1) When an officer is called upon to perform duties of a higher post but does not possess the necessary qualifications for appointment to that post, he shall be paid special duty allowance at the rate of fifteen per cent (15%) of the officer's basic salary. The payment of special duty allowance will be subject to recommendation by the Human Resource Management Advisory Committee and approval by the Authorized Officer.

(2) When a post falls temporarily vacant due to the absence of the substantive holder, special duty allowance should not be paid to an officer performing duties of such a post unless the period of absence exceeds thirty (30) days.

(3) Officers shall not be called upon to perform duties of a post that is more than two (2) grades higher than the officer's substantive grade.

(4) Special Duty Allowance will not be payable to an Officer for more than six (6) months.

(5) Officers performing duties of a higher post under this provision shall be eligible for travelling privileges, accommodation allowance, subsistence allowance or an extraneous allowance and entertainment allowance applicable. However, the officer shall not qualify for house allowance or other remunerative allowances applicable to the higher post.

Daily Subsistence allowance (Local Travel)

C.16 (1) When an officer is travelling on duty and stays overnight away from his duty station and makes his own arrangements for accommodation, accommodation allowance shall be paid to him at the rates determined by the Government from time to time.

(2) Accommodation allowance will be paid for a maximum continuous period of thirty (30) days. Notwithstanding the provisions of paragraph (1) of this provision, an officer who is required to be away from his duty station for more than thirty (30) days will be paid accommodation allowance for the subsequent additional days at half ($\frac{1}{2}$) rate up to a maximum period of five (5) months. Beyond this period, if the officer continues to work in the same station, this will be treated as a posting and accommodation allowance will cease to be applicable.

(3) On transfer from one station to another, an officer may claim accommodation allowance for self and spouse and up to a maximum of four (4) unmarried children under twenty five (25) years of age, who are living with and are in full time schooling and dependent on him should they be compelled to spend one or more nights on the journey. The rate of allowance for the spouse and children aged eighteen (18) years and above will be the same as that of the officer. The rate for the children below eighteen (18) years will be half that payable to the officer.

Meal Allowance

C.17 (1) Meal allowance will only be paid to officers travelling on duty within the country but who are not required to spend a night away from the permanent duty station. Meal allowance will not be paid alongside accommodation allowance.

(2) Meal allowance shall be paid at the rate of 15% for breakfast, 20% for lunch and 20% for dinner of the daily subsistence rate applicable.

(3) Meal allowance shall not be paid as a compensation for officers who are required to work beyond the official working hours.

Daily Subsistence Allowance while Travelling on Duty Outside Kenya

C.18 (1) A public officer who is required to travel on duty outside Kenya will be granted subsistence allowance at the daily rates determined by the government from time to time.

(2) The rates of subsistence allowance are designed to meet the cost of accommodation at good, but not luxury class hotels, meals, including service charges, local travelling (such as taxi, bus or train fare), incidental expenses including any taxes and an element in respect of essential entertainment.

(3) Travelling expenses incurred from the airport to a hotel or other residential place and vice versa, airport charges, fees for vaccination, visas and passport charges will be refunded.

(4) Where an officer's travelling and accommodation expenses are covered in full by the Kenya Government or any other Organization, a residual allowance of up to one-quarter ($\frac{1}{4}$) of the standard rate of subsistence allowance will be paid to him to cover incidental expenses.

(5) In cases where the sponsor does not meet the expenses directly but pays an allowance and such allowance is less than the standard rate of subsistence allowance, the officer may claim the difference from the Government.

Overtime Allowance

C.19 (1) Where an officer in Job Group 'J' and below is required to work overtime, an allowance may be granted to him with approval of the departmental head for overtime worked in excess of forty (40) hours per week, at the rate of one and a half ($1\frac{1}{2}$) times the officer's basic salary during working days and two (2) times the officers basic salary during other days including public holidays.

(2) Overtime allowance will be paid subject to a maximum of ten hours per week.

(3) This provision will not apply to certain categories of staff in State Departments who are required to work overtime regularly and an allowance has been authorized for their compensation.

Transfer Allowance

C.20 (1) When an officer is transferred from one station to another, he will be eligible for transfer allowance amounting to one (1) month's basic salary

provided the new station is not less than 40 kilometres from the former station. Transfer allowance shall be paid in the subsequent payroll cycle.

(2) Transfer allowance will not be paid to:-

- (i) Field officers such as Surveyors, Hydrologists, Engineers, Geologists, and Inspectors of Works, when moving from one camp to another;
- (ii) Officers who are deployed on temporary basis (i.e. on relief duty) for a period not exceeding five (5) months; and
- (iii) Officers who are transferred at their own request.

Field Allowance

C.21 Field officers such as surveyors, road foremen, prospectors and officers in charge of land development units, whose duties entail continuous field work and who live in movable accommodation (i.e. portable huts, tents or caravans), may be granted a regular field allowance at the rate of 25% of the daily Accommodation Allowance as provided from time to time.

Baggage Allowance

C.22 (1) When travelling on first appointment, transfer or termination of appointment, an officer shall be provided with a government vehicle to transport his luggage.

(2) In the absence of a vehicle, the officer will be eligible for a baggage allowance at rates determined by the government from time to time.

(3) The officer will be expected to request for transport within three (3) months of appointment, transfer or termination of appointment failure to which, the privilege will be forfeited.

(4) In case of the death of an employee, the next-of-kin shall be eligible for a baggage allowance at rates determined by the government from time to time.

Other Allowances

C.23 The Government may pay other allowances to different categories of public officers in various circumstances. Such allowances shall be determined and communicated from time to time.

SECTION D BENEFITS

Introduction

This section guides on various benefits including Housing, medical, transport and terminal benefits provided by the Government.

Allocation of Government Houses

D.1 (1) The Government provides government houses for employees who are required to pay rents at prevailing market rates as determined from time to time by the Ministry responsible for Housing.

(2) Government institutional houses shall be allocated at the station where an officer is posted for duty. The guidelines for allocation shall be provided by the Ministry responsible for Housing from time to time.

(3) Applications for Government housing should be submitted to the Authorized Officer responsible for Housing through the respective Authorized Officers.

(4) The responsibility for the allocation of housing at Institutions and recovery of rent rests with the respective Authorized Officers.

Occupation of Government Houses

D.2 On occupation of a Government quarter, the Authorized Officer responsible for housing shall notify the Authorized Officer of the State Department in which the public officer is serving for the purpose of rent recovery.

Government Mortgage Scheme

D.3 (1) The Government through the Ministry responsible for Housing has established a Mortgage Scheme for state and public officers to facilitate the officers to purchase or construct residential houses.

(1) The scheme shall be managed in accordance with the regulations developed by the Ministry responsible for Housing.

Government Housing Fund

D.4 (1) The Government through the Ministry responsible for Housing has established a Housing Fund to facilitate home ownership.

(2) The fund shall be managed in accordance to relevant legislation and regulations developed by the Ministry responsible for Housing.

(3) Public Officers shall participate in the Government Housing fund in accordance with the enabling law and guidelines.

MEDICAL BENEFITS

Introduction

D.5 (1) The Government shall provide medical support to employees in accordance with prevailing laws, policies and guidelines.

(2) Ministries, Departments and Agencies (MDAs) shall ensure that their employees have an appropriate medical scheme for their employees.

(3) In addition, the Government shall establish a contributory civil servants post-retirement medical scheme. The scheme guidelines shall be issued and reviewed in compliance with existing legal frameworks governing terms and conditions of service.

Medical Treatment outside Kenya

D.6 Employees and their dependents will be eligible for medical treatment outside the country in cases where such treatment is not available locally, subject to prior authorization by the Director General of Medical Services and the Scheme administrator.

Medical Ex-gratia Assistance

D.7 (1) The Government will provide medical ex-gratia assistance to cover in-patient medical expenses incurred by an officer, spouse and dependent children 25 years and below, subject to prevailing limits, upon exhaustion of the medical cover entitlement within a financial year.

(2) All cases for ex-gratia assistance should be referred to the Ministry responsible for Public Service for consideration and approval, in consultation with the National Treasury.

(3) Requests for ex-gratia shall be made to the Ministry responsible for Public Service through the respective Authorized Officer

TRANSPORT

D.8 Transport in the Public Service is regulated through the Government Transport Policy. This Section addresses various aspects of the Transport Policy and includes the car loan scheme, transport of officers while on duty and use of Government vehicles. It includes travelling privileges to members of the officer's family in certain circumstances and transportation of personal effects.

Car Loan Scheme

D.9 (1) The Government through the Ministry Responsible for Finance has established the Civil Servants Car Loan scheme to enable public officers purchase cars personal cars.

(2) The loan shall be disbursed as per the regulations developed by the Ministry responsible for Finance.

Eligibility for Transport

D.10 (1) The Government will provide transport for an officer travelling on duty outside the duty station.

(2) Transport will be provided for an officer, his spouse and unmarried children aged twenty five (25) years and below who are living with and are dependent on him, on occasions when they are travelling on transfer and on retirement. The age limit for children may be extended beyond twenty-five (25) years for, children living with disability or for those still in school, with the approval of the Authorized Officer.

Travelling by Public Service Transport

D.11 When travelling by road or railway on transfer or duty outside the duty station, an officer will be eligible to claim applicable reimbursements of the amount of the fare paid on production of travel tickets.

Travelling by Government Vehicles

D.12 All officers in Job Group 'T' and below will use pool transport when travelling on official duty. State Departments will provide officers travelling outside their duty stations with pool transport or imprests to facilitate use of public transport depending on the nature of work and cost implication. Where possible, officers should travel together in one vehicle.

Use of Personal Vehicle

D.13 (1) In the absence of Government vehicle, an officer may with prior authority of the Authorized Officer use his personal vehicle for official duty.

(2) Where such authority is granted, the employee shall claim reimbursement based on the prevailing Automobile Association (AA) of Kenya rates. The vehicle capacity shall be limited to 2,000 c.c.

Travelling by Air

D.14 (1) When travelling on duty to another country an officer may travel by air. Air travel on duty within

Kenya will require the prior approval in writing of the Accounting Officer. Such approval may be given when other modes of transport are unavailable, air travel is economical or where the saving of time is paramount.

(2) State and Public Officers will travel as Business or Economy based on existing government policy that categorizes such officers.

(3) When it is necessary to travel by air within Kenya to places not served by any commercial airline, the services of other Government departments/Agency shall be utilized in accordance with the existing transport policy.

Travelling for Interview

D.15 An officer who is invited for an interview by the Public Service Commission or a State Department will be regarded as travelling on duty and his travelling expenses will be charged to the appropriate vote of his State Department/Agency. This regulation will also apply to officers who travel to other stations to sit for examinations conducted by the Public Service Commission.

Travelling on Retirement

D.16 On retirement, the Government will meet the officer's transport cost to his retirement destination within Kenya. The cost of transport in this case will be limited to the cost of road and rail transport in respect of the officer, his nuclear family and baggage. The officer will be expected to request for transport within six months of retirement.

Transport Facilities on Bereavement

D.17 (1) Transport facilities for a deceased officer and immediate family members shall be provided at Government expense to the place of burial when an officer dies while in service and if the spouse or dependant unmarried children aged twenty five (25) years and below die while the officer is still in the service.

(2) The Government shall provide a token contribution of Ksh.100,000 to defray funeral expenses for a deceased officer, one spouse and up to four (4) children aged twenty five (25) years and below.

(3) Where Government transport is not available, a private hearse may be hired at Government expense.

(4) An officer who will represent the Government at the burial of the deceased shall be granted official transport.

EXIT FROM THE SERVICE AND TERMINAL BENEFITS

D.18 The Government has established various benefits payable to public officers who exit from the service. This Section provides guidelines on various forms of exit from the Service and the benefits payable.

D.19 The various forms of exit from the public service include:

- (i) Resignation
- (ii) Termination in accordance with the letter of appointment
- (iii) Expiry of contract
- (iv) Retirement:
 - (a) on attainment of mandatory retirement age
 - (b) under '50 Year Rule'
 - (c) on medical grounds
 - (d) on abolition/re-organization of office
 - (e) Retirement in accordance with the provisions of the relevant contributory pension scheme.
- (v) Dismissal
- (vi) Death

Resignation

D.20 (1) An officer may resign his appointment by giving one (1) month notice or by paying one month's gross salary in lieu of such notice.

(2) An officer on contract may resign his appointment in accordance with the terms of the contract.

(3) On resignation, an officer is required to settle any outstanding liabilities to the Government. Any amount due to an officer will be withheld and applied to settle any sum due from him. If any liabilities are outstanding, the matter will be referred to the Attorney General for legal redress.

(4) An officer whose terminal benefits are

determined under the Pensions Act will not be eligible for pension or gratuity on leaving the Service except in the specific circumstances defined in the Pensions Act or letter of appointment.

(5) An officer who resigns cannot, if subsequently re-employed after a break of service, count his previous service for pension.

(6) An officer who is a member of the Public Service Superannuation Scheme, shall on resignation, be eligible for terminal benefits in accordance with the terms set out in the scheme.

Termination of Appointment

D.21 The employment of an officer serving on contract or probationary terms may be terminated by the Commission or an Authorized Officer in accordance with the provisions of the officer's agreement or by giving appropriate period of notice or gross salary in lieu of notice.

Mandatory Retirement Age

D.22 All officers shall retire from the Service on attaining the mandatory retirement age of 60 years, 65 years for persons with disabilities and/or as may be prescribed by the government from time to time.

Retirement under the '50 Year' Rule

D.23 (1) An officer on attaining the age of 50 years may opt to retire any time thereafter.

(2) An officer whose pension is determined under the Pensions Act and has completed ten (10) years' service, will be eligible for pension should he retired or opt to retire under '50 year' rule. However, if he has less than

ten years' service, he will be eligible for a gratuity in accordance with the Pensions Regulations.

(3) An officer will be required to give at least three (3) months' notice of his intention to retire under the '50 year' rule.

(4) An officer who is a member of the Public Service Superannuation Scheme and opts to retire under the '50 year' rule will be eligible for benefits under the Scheme.

(5) Applications from officers to retire under the '50 year' rule will be approved by the Commission on recommendation of the respective Authorized Officers.

Retirement on Medical Grounds

D.24 (1) Where it appears to an Authorized Officer that an officer is unfit for continued service due to ill-health, the officer may be considered for retirement on medical grounds.

(2) Where it is necessary to convene a Medical Board to determine an officer's fitness for further service or otherwise, the Authorized Officer shall refer the case to the Director General of Medical Services.

(3) The Director General of Medical Services shall forward a report to the respective State Department within a period of one (1) month after appearance of the Officer before the medical board.

(4) The retirement of an officer on medical grounds will require the authority of the Public Service Commission.

Retirement on Abolition/Re-organization of Office

D.25 An officer may be retired either on the abolition of the office he holds or upon the re-organization of the State Department in which he holds an office. The retirement shall be approved by the Public Service Commission.

Dismissal

D.26 (1) Dismissal refers to termination of appointment arising out of disciplinary proceedings.

(2) An officer, who is dismissed from the Service, shall be eligible for pension benefits in accordance with the provisions of the relevant pensions scheme. He/She will also be entitled to pension contribution under N.S.S.F. Act and the Widows and Children's Pension Scheme as applicable.

(3) An officer who is a member of Public Service Superannuation Scheme shall on dismissal be eligible to terminal benefits as provided under the relevant Act.

Death

D.27 Upon the death of a public officer, the legal beneficiary shall be paid death gratuity and dependants pension. In addition, in case of death of an officer who was contributing to Widows and Children's Pension Scheme, the legal beneficiary shall be paid the benefits thereof.

National Social Security Fund (NSSF) Benefits

D.28 An officer who is a member of the NSSF shall be eligible for terminal benefits under the NSSF Act.

Widows' and Children Pensions Scheme

D.29 (1) The Widows' and Children's Pensions Scheme, established under the Widows' and Children's Pensions Act of 1965, makes provision for granting pensions to widows and children of deceased public officers with effect from 1st January, 1966. Entry into the Scheme was optional for all male Kenyan citizens who were serving with the Government on pensionable terms of service (confirmed or probationary) on or before 1st January, 1966 and compulsory for those who joined the service thereafter.

(2) A female pensionable officer who is a Kenyan citizen may opt to join the Scheme if she can prove her husband is wholly or mainly dependent on her. If, however, in the event of her husband's death, she remarries, the subsequent marriage and the children thereof shall not be taken into account for the purposes of the Scheme unless she proves while she is still a public officer that her husband by that marriage is wholly or mainly dependent on her.

(3) A monthly contribution of 2% of the officer's salary will be recovered towards the fund.

(4) This Regulation will apply to officers whose pension is determined under the Pensions Act.

Refund of Contributions

D.30 (1) Where an officer who was a member of WCPS has no spouse or children of dependant age on the last day of his service, i.e. he remained unmarried or his spouse died during his service and all his children have

ceased to be dependant and he leaves the service with eligibility for the grant of a pension, the total amount of his contributions shall be refunded to him with interest.

(2) Where an officer leaves the service on resignation or dismissal, the total amount of his contributions shall be refunded to him with interest.

(3) If an officer retires on any grounds, he can opt to be refunded his contributions, instead of benefits under the Scheme.

Conditions Attached to Payment of Benefits

D.31 (1) The widow's pension is payable until her death, remarriage or cohabitation.

(2) A widow's pension will not be granted (except in special circumstances) if the husband dies within twelve (12) months of the marriage and there are no children.

(3) An officer's widow cannot benefit if the marriage took place after he left the service.

(4) In the case of a polygamous officer, if he leaves more than one widow, benefits are divided equally between the widows, subject to the satisfaction of the other conditions.

(5) A divorced wife shall not benefit.

(6) A child's pension is payable in accordance with the Widows and Children's Pension Scheme (WCPS) Act.

(7) Legally adopted child qualifies for payment or benefit while a step child only qualifies for payment or benefit if the child was wholly or mainly dependent on the officer at the time of his death

Definitions of Terms used in Pensions-

D.32 (1) Pensionable Office means an office to which an officer has been appointed whether on probation or otherwise on terms which include eligibility for the grant of a pension under the Pensions Act or the Public Service

Superannuation Act or other relevant Trust Deed and Rules relevant for pension purpose.

(2) Pensionable Officer means an officer who is the holder of a pensionable office in which he has been confirmed.

(3) Qualifying Service means service which may be taken into account in determining whether an officer is eligible, by length of service, for pension or gratuity.

(4) Pensionable Service means service which may be taken into account in calculating a pension or gratuity under a Pensions Act e.g.

- (i) Probationary service followed by service on permanent and pensionable terms is reckonable in full for the purposes of calculating a pension or gratuity;
- (ii) Contract service is reckonable in full if an officer surrenders or refunds the gratuity earned under the contract provided that he was admitted without a break of service to the pensionable establishment;
- (iii) Provident Fund service is reckonable in full if an officer surrenders his personal contributions to revenue provided that he was admitted without a break of service to the pensionable establishment;
- (iv) Temporary service; normally counts at half ($\frac{1}{2}$) rate in calculating a pension or gratuity; and
- (v) Unpaid leave is not pension earning.

Eligibility for Pension/Gratuity

D.33 (1) An officer is eligible for the grant of a pension or gratuity when he retires from the service of the Government in any of the following circumstances:-

- (i) Age not less than 50 years;
- (ii) Abolition or re-organization of office;
- (iii) Resignation;
- (iv) Dismissal; and
- (v) Ill-health.

Reporting of Retirements to Respective Pension Schemes

D.34 (1) In cases where the retiring officer is eligible for retirement benefits under the Pensions Act, a claim for such benefits should be submitted to the Pensions Department, National Treasury on the appropriate Form G.P. 178 or 179 as the case may be, at least nine (9) months before the date of retirement.

The Head of the Human Resource Management Division in a State Department or an officer duly authorized by him to sign notices of retirement will be held responsible for the availability of the relevant service records to facilitate the submission of an acceptable retirement benefits claim to the Director of Pensions, National Treasury within the time limit specified in the sub-section (1) of this regulation. The same officer will be held accountable for the accuracy and timely submission of information to the Director of Pensions, Treasury.

(2) The retiring officer should submit all the documents stipulated in the retirement notice within the time frame. In cases where the retiring officer is a member of the Public Service Superannuation Scheme or any other contributory pension scheme in the Public Service a claim for retirement benefits shall be submitted to the scheme management, at least nine (9) months before the date of retirement.

Retirement Benefits Payable Under the Pensions Act

D.35 (1) The retirement benefits payable under the Act are:-

- (i) Pensions which include service pension (whether unreduced or reduced), injury pension, killed-on-duty pension and abolition additional pension;
- (ii) Gratuities which include commuted pension gratuities, service gratuities, death gratuities, compassionate gratuities and marriage gratuities;
- (iii) Other allowances which include annual allowance and maintenance allowance.

(2) The rates and modes of calculation of these benefits are set out in the pensions regulations.

Transfers and Secondments of Pensionable Officers

D.36 (1) When a pensionable officer is transferred to another Government or administration, which is "scheduled" under the Pensions Act, the pension Form GP.178 and the statement of aggregate pensionable emoluments form GP.190 should be completed and forwarded to the Pensions Department of the Treasury for submission to the Government or Administration concerned. Similarly, when an officer is transferred to the service of the Kenya Government, the Pensions Department of the Treasury should be informed.

(2) Transfers of pensionable officers from the Government to organizations which are not "scheduled" under the Pensions Act but which have been declared to be "public service" for the purposes of the Act, need not be notified to the Pensions Department of the Treasury until the eventual retirement from the organizations of such officers.

(3) State Departments are required to ascertain from the State Department responsible for Public Service or the Pension Department of the Treasury whether or not an organization to which their officers are seeking transfer has been declared a "public service".

(4) An officer whose benefits are determined under the Public Service Superannuation Scheme will be able to transfer his terminal benefits to a new organization.

(5) When pensionable officers are seconded from the civil service to another public institution, the recipient institution or the officer will pay pension contributions to the Director of Pensions at the prevailing rate of the officer's civil service basic salary for the period of secondment.

Public Service Superannuation Scheme

D.37 (1) The Government has established the Public Service Superannuation Scheme for Civil Servants, Teaching Service and the Disciplined Services. The Scheme is a retirement benefits scheme under the Retirement Benefits Act, 1997.

(2) Membership to the Scheme will be mandatory for serving employees below the age of 45 years and optional for those aged 45 years and above. All new employees appointed to the Service will be required to join the Scheme.

(3) The benefits and contributions under the Public Service Superannuation Scheme will be portable. Portability refers to employee's right to transfer pension benefit credit from a former employer to a current one.

Objectives of the Scheme

D.38 (1) The Scheme will ensure that every Member of the Scheme receives his retirement benefits as when they become due. The Scheme will also improve the social security of Members by ensuring that they save in order to cater for their livelihood during their retirement; and

(2) There will be a uniform set of rules, regulations and standards for the administration and payment of retirement benefits for the Members of the Scheme on his own request.

Rates of Contribution

D.39 (1) The Government will contribute 15% of an employee's monthly basic salary drawn from the Consolidated Fund towards the employee pension while the employee will contribute 7.5% of his monthly basic salary towards the Scheme. However, the employee may make additional Voluntary Contributions to the Scheme on request.

(2) The Government will provide a life insurance policy that has disability benefits in favour of every Member of the Scheme for a minimum of five(5) times of the Member's annual pensionable emoluments.

(3) The contributions will be paid into the Public Service Superannuation Fund. Employees will be allowed to access their contributions on leaving the Service including any Voluntary Contributions made into the Scheme together with the accrued interest thereon in full.

Vesting Period

D.40 (1) Vesting refers to the legal ownership of the benefits built up in a scheme for a member including what has been contributed by the employer and returns thereon.

(2) The Scheme is flexible and provides for vesting of employee benefits on pro-rata basis as follows:-

- (i) Below 5 years: Access only employee's contribution.
- (ii) After 5 years: Access 50% Government contribution.
- (iii) After 10 years: Access 100% Government contribution.

(3) An employee will be eligible to access 100% Government contribution after contributing to the Scheme for a minimum period of ten (10) years.

(4) An employee who is dismissed or resigns from the Service before completion of the 5 years vesting period will not be eligible for Government contribution. However, the employee will be eligible for his full contribution for the period served, including interest that has accrued from his contributions.

(5) Where a Member dies while in Service, the contributions by the Government to the Member's retirement account will vest in the dependants of the Member.

Transition Modalities

D.41 (1) On joining the Scheme, benefits accrued under the non-contributory pension scheme will be calculated and a Recognition Bond issued to each employee. These benefits will be payable on retirement or on leaving the Service under the circumstances provided for in the Pensions Act.

(2) Widows and Children's Pension Scheme W.C.P.S contribution will cease immediately an employee joins the Scheme to avoid double contribution.

Management of the Scheme

D.42 (1) The new Scheme ensures involvement of the employees and the pensioners in the management of their retirement fund through participation in the Board of Trustees in accordance with the Retirement Benefits Authority.

(2) The Scheme will be operated and managed by the Public Service Superannuation Fund Board of Trustees to be appointed under the Public Service Superannuation Act. The Board will appoint the Administrator, the Manager, Custodian and other service providers of the Scheme and Fund.

(3) The Members of the Board of Trustees will consist of:-

(i) Chairman who shall be appointed by the Cabinet Secretary and who:-

(a) has at least twenty years or an aggregate of twenty years' experience in a senior management position in the Public Service; and

(b) is not in the service of any employers' or worker's representatives or any person affiliated to any of the organizations represented on the Board;

(ii) Principal Secretary in the Ministry for the time being responsible for matters relating to finance or his representative;

(iii) Principal Secretary in the Ministry for the time being responsible for matters relating to the public service or his representative;

(iv) Secretary to the Teachers Service Commission or his representative;

(v) Secretary to the Public Service Commission or his representative;

(vi) Inspector General of the National Police Service or his representative;

(vii) Three other Trustees appointed by the Cabinet Secretary, of who:-

(a) one shall be nominated by the Kenya National Union of Teachers;

(b) one shall be nominated by the Kenya Union of Post Primary Education Teachers;

(c) one shall be nominated by the Union of Kenya Civil Servants.

(4) The duties of the Board of Trustees will be

(i) Collect contribution of Members;

(ii) Collect contribution of members

(iii) Optimally invest the contributions collected;

(iv) Protect Members contributions;

(v) Provide pension and other benefits to the Members of the Scheme and their dependants;

(vi) Advise the Cabinet Secretary for Finance on any adjustments to improve the Scheme; and

(vii) Perform such other functions as may be conferred by the Act.

(5) Employee representation will include a member from the Union of Kenya Civil Servants, Kenya National Union of Teachers and Kenya Union of Post Primary Education Teachers.

DRAFT

(6) The Retirement Benefits Authority will regulate the Fund.

Certificate of Service

D.43 (1) Certificate of Service Form G.P. 31 will be given to an officer, upon his retirement, resignation, dismissal or termination of appointment.

(2) An Authorized Officer, when completing the certificate should bear in mind that its main purpose is for use as a reference covering the officer's period of Government Service.

(3) The certificate will be signed by the Head of the officer's Department and countersigned by the Head of Human Resource Unit. A copy of the certificate will be filed in the officer's personal file.

(4) In the case of an officer who has not rendered satisfactory service during his employment, care should be taken to ensure that the certificate is carefully worded so as to give the officer credit for any good qualities which he may have shown.

Testimonials and Letters of Commendation

D.44 Testimonials and letters of commendation may be awarded to employees by supervisors as a motivation for exemplary service.

SECTION E LEAVE

Introduction

E.1 This section addresses the circumstances under which annual leave and other categories of leave are granted.

Categories of Leave

E.2 The following are the categories of leave in the public service:

- (i) Annual Leave;
- (ii) Maternity Leave;
- (iii) Child Adoption Leave;
- (iv) Paternity Leave;
- (v) Unpaid Leave;
- (vi) Compassionate Leave;
- (vii) Leave for Sportsmen/women;
- (viii) Sick Leave;
- (ix) Terminal Leave; and
- (x) Leave of Absence.

Annual Leave

E.3 (1) Annual leave is a right to every public officer and will be granted for recuperative purposes to enable the officer renew his energies and improve on efficiency. Annual leave is granted by the Authorized Officer, subject to the exigencies of service.

(2) (i) An officer will be eligible for annual leave at the commencement of a 'leave year' except in the case of a newly appointed officer who will be required to

serve for a minimum of three (3) months before being granted annual leave.

- (i) 'Leave year' will commence on 1st July and end on 30th June the following year.
- (iii) All public officers shall be entitled to 30 days annual leave which excludes Saturdays, Sundays and Public Holidays.
- (iv) Annual leave is not accumable. However, an officer may, if he so wishes, carry forward from one leave year to another not more than one-half of his annual leave entitlement. This arrangement is intended to enable an officer to reserve a portion of his annual leave to be taken in case of an emergency.
- (v) Annual leave must be taken within the leave year it falls due. Deferment of annual leave from one leave year to another shall be permitted subject to the provisions of the Employment Act.
- (vi) An officer stationed in a designated hardship area may avail himself of his annual leave in two portions. Each portion should be taken once every period of six months, i.e. from 1st July to 31st December and from 1st January to 30th June.
- (vii) An officer stationed in a hardship area who takes not less than half of his annual leave entitlement once every period of six months,

will be granted, in addition to his leave, travelling time of five (5) days each way and normal travelling privileges in terms of this Manual.

- (viii) Annual leave for a newly appointed officer will be calculated on a pro-rata basis only for the year of his appointment.
- (ix) An officer who has not availed himself for the annual leave due for the year in which his employment ceases will be entitled to annual leave on pro-rata basis. In addition, an officer may be granted the annual leave carried forward from the previous leave year.

Commutation of Leave

E.4 (1) Except in exceptional circumstances, annual leave may not be commuted for cash nor will unutilized leave days be claimed by dependants to the estate of a deceased officer.

(2) Authorized Officers shall be responsible for authorizing commutation of leave for cash where leave is not taken due to exigencies of service.

(3) Commutation of leave will be based on an officers basic salary for the relevant leave year.

(4) The above notwithstanding, it is reiterated that officers should be allowed to utilize their leave in each year.

Maternity Leave

E.5 (1) A female officer who is required to be absent from duty on account of confinement shall be granted maternity leave with full salary for a maximum period of ninety (90) calendar days exclusive of the annual leave due for the year.

(2) An application for maternity leave should be submitted to the Authorized Officer. The application should be supported by a medical certificate indicating the date on which maternity leave should commence.

(3) Should it be necessary to extend maternity leave beyond the prescribed period of ninety (90) calendar days on grounds of sickness of the mother, the officer will be granted sick leave subject to confirmation by a recognized medical practitioner.

(4) Where the extension sought is on the account of the child's sickness the officer will be expected to utilize her annual leave entitlement.

(5) In the event of a still birth, a female employee shall be entitled to maternity leave of thirty (30) days

Child Adoption Leave

E.6 (1) An officer who has been granted adoption rights under the Children's Act and wishes to take leave for purposes of bonding and integrating the child into the family, will be entitled to Child Adoption Leave in accordance with the Employment Act, subject to production of an adoption order.

(2) Where the adoption is by both the officer and spouse, and the spouse is also an employee in the service, child adoption leave will only apply to the female officer.

Surrogacy

E.7 Surrogacy is an arrangement in which a woman (the surrogate) agrees to carry and give birth to a child on behalf of another person or couple. Such officer shall be entitled to maternity/paternity leave in the same manner provided at sec E5 of this manual in order to undertake childcare. A surrogacy agreement administered by a Commissioner of oaths shall be provided as proof.

Paternity Leave

E.8 (1) A male officer will be eligible for paternity leave for a maximum period of ten (10) working days during the period of the spouse's maternity leave or child adoption leave.

(2) In this regard, it is clarified that in the case of a male officer with more than one wife, he will be entitled to paternity leave only in respect of the wife registered under the National Hospital Insurance Fund (NHIF) and such leave shall be taken not more than once per year.

(3) To enjoy paternity or adoption leave, a male officer will be required to present a notification of birth of the child or an adoption order.

Unpaid Leave

E.9 (1) Unpaid leave may be granted by the Authorized Officer on recommendation of the respective Human Resource Management Advisory Committee on the following grounds:-

- (i) Urgent private affairs of exceptional nature not exceeding sixty (60) calendar days;
- (ii) Officers whose spouses are posted to foreign missions during the tour of service;
- (iii) Officers who are appointed to international organizations where they cannot transfer their service or be on secondment for a period not exceeding three (3) years;
- (iv) Spouses of officers appointed under (iii) above, will be granted unpaid leave for a maximum non-renewable period of one (1) year.

(2) Unpaid leave will not be increment-earning.

(3) During the period of unpaid leave, the Government will not make a contribution of its portion towards an officer's pension under the Public Service Superannuation Scheme. The officer will however, be free to contribute his portion towards the Scheme.

(4) The period of unpaid leave will not be pension-earning under the Pensions Act Cap. 189.

Study Leave

E.10 (1) There shall be no provision for unpaid study leave in the Public Service.

(2) Employees on part time or full time self-sponsored courses will be granted study leave and will be eligible for full salary and benefits as long as the course is approved, relevant and is undertaken in a recognized institution.

Compassionate Leave

E.11 (1) An officer will be eligible for compassionate leave for up to ten (10) working days in a leave year in the event of death of a parent, spouse, child or sibling.

Special Leave for Sportspersons

E.12 (1) An officer who is selected to represent Kenya in National, Regional or International fixtures will be granted special leave with full salary for the necessary period of his training and subsequent participation in sports.

(2) This special leave will not be counted against annual leave entitlement and will be approved by the Authorized Officer on recommendation of the respective Human Resource Management Advisory Committee, in consultation with the Authorized Officer in the State Department responsible for sports.

Sick Leave

E.13 (1) Sick leave is the approved absence of an officer from duty on account of illness and includes weekends and public holidays.

(2) A medical certificate signed by a medical officer must be produced in every case of absence on account of illness.

(3) An officer may be granted sick leave subject to the maximum period indicated below:

- (i) All officers on pensionable or contract terms of service will be granted up to three months leave on full salary followed by three months on half salary and thereafter the officer will not be eligible for salary. However, the officer shall be entitled to housing allowance and medical benefit.
- (ii) An officer on sick leave as a result of an accident or occupational disease will be entitled to full salary as per the Work Injury Benefits Act. The officer will however, be subject to assessment by the Medical Board to determine his fitness for further service.
- (iii) If the officer is unable to resume duty within the first three months of sick leave, the Authorized Officer will refer the case to the Director of Medical Services to convene a Medical Board.
- (iv) On the expiry of the six months, the officer shall not be reinstated in the payroll until his case is determined as provided in paragraph (i) above
- (v) Where a public officer is found to be unfit for service by the Medical Board, the case shall be referred to the Public Service Commission for retirement on medical grounds.

(4) Sick leave may be authorized by registered medical practitioners for up to a maximum of twenty one (21) days. Should it be necessary to allow absence from duty in excess of this period, the medical practitioner shall provide reasons.

(5) Sick leave in excess of three (3) months will require confirmation of the Director of Medical Services who will decide if the officer should be examined by a Medical Board with a view to determining whether or not there are reasonable prospects of eventual recovery and fitness for duty.

Terminal Leave

E.14 An officer who is due for retirement will be entitled in addition to his annual leave, thirty (30) calendar days leave pending retirement. This leave must be taken a month preceding retirement or be forfeited.

It will neither be commuted for cash nor will the officer qualify for additional leave allowance.

Leave of Absence

E.15 (1) Leave of absence shall be granted to a public officer on recommendation of the Authorized Officer through the relevant Human Resource Management Advisory Committee for a period not exceeding three years which may be extended only once for a period not exceeding three years on the following circumstances;

- (i) For purposes of taking up contractual appointments within a public body, private corporation or international organization to which the officer cannot be seconded or to which service cannot be transferred;
- (ii) To a spouse of a foreign service officer who has been posted outside Kenya during the tour of service of the foreign service officer;
- (iii) To serving officers appointed to state offices or to positions that can only be held on contractual terms.

(2) Leave of absence shall not be increment earning.

(3) During leave of absence, the public body will not make a contribution of its portion towards an officer's pension under contributory pension scheme.

(4) An officer on leave of absence may continue to contribute towards the officer's pension under a contributory pension scheme during the leave of absence.

(5) The period of leave of absence shall not be pension earning.

(6) Upon completion of the period of leave of absence, a public officer shall revert to the terms and conditions of service appropriate to their substantive position in the public body and shall not be eligible for another leave of absence within a period of three (3) years from the period of the last leave of absence.

Festival Holidays

E.16 Leave of absence on the occasion of religious festivals may be granted without loss of pay for not more than two days in a leave year, subject to the exigencies of the service. An application for leave on such an occasion should be addressed to the Authorized Officer well in advance of the date on which any particular religious festival is celebrated.

Application for Leave

E.17 Application for leave should be submitted in the prescribed form to the respective Authorized Officer.

DRAFT

SECTION F
WORK ENVIRONMENT
HEALTH AND SAFETY

Introduction

F.1 (1) This Section provides guidelines and standards for the prevention and protection of officers against accidents and occupational hazards arising at the work place. It also provides for guidelines, procedures and modalities for the administration and payment of compensation for work related injuries and accidents contracted during and outside the course of work.

(2) It further provides for guidance and Counseling and putting in place measures for the management of HIV/AIDS at the workplace and the rehabilitation of officers who may be facing challenges of drugs and substance abuse.

(3)

Guidelines to General Safety

F.2 (1) Authorized Officers shall maintain healthy and safe working environments for officers under their respective State Departments.

(2) All officers have the responsibility to ensure safety to themselves and others when performing their duties.

Emergency Preparedness

F.3 (1) Every State Department shall put in place measures to prevent and mitigate against accidents, explosions, fire, floods, earthquakes, bomb threats and prepare procedures to be followed in such events.

(2) Authorized Officers shall have a responsibility of ensuring that all officers and visitors are informed of and are fully conversant with the emergency procedures.

Fire Precautions

F.4 (1) Authorized Officers are responsible for ensuring that fire protection facilities are provided in the buildings used by Departments under their control and are adequate and maintained as advised by Fire Officers and Occupational Safety and Health Officers. They are also responsible for enforcing all necessary fire precaution measures as directed by both the State Departments responsible for Public Works and Labour.

(2) General information on fire precautions and fire equipment is contained in publications which are obtainable from the Principal Fire Officer in the State Department responsible for Public Works. Regulations regarding fire safety are obtainable from the State Department responsible for Labour.

Fire Prevention

F.5 (1) The Principal Fire Officer and the County Fire Officers are responsible for providing advice on all matters concerning fire prevention, firefighting, fire protection and fire demonstrations in all Government premises.

(2) The State Department responsible for Public Works is responsible for ensuring that all buildings are fitted with firefighting equipment. Individual State Departments are responsible for the subsequent replacement of portable equipment and provision of refill

for such equipment with advice from Fire Officers and the Occupational Safety and Health Officers.

(3) Fire prevention and protection in buildings leased to the Government is the responsibility of both the owner and occupier of the building. The Authorized Officers of the State Department responsible for Public Works and that occupying the premises shall be legally responsible to ensure compliance.

(4) Alterations should not be carried out on buildings without prior consultation with the Fire Officers and the Occupational Safety and Health Officers. Any means of escape from a building should be kept clear of any obstruction which would make it difficult for occupants of the building to escape in case of fire.

(5) No hazardous or highly inflammable materials should be stored in buildings without the approval of the Principal Fire Officer or County Fire Officers.

(6) Positions of firefighting equipment must not be interfered with nor should firefighting equipment such as hose reels and extinguishers be used for purposes other than firefighting.

(7) Each Government building must have a Safety and Health Committee headed by a responsible officer and constituted in accordance with the Factories and Other Places of Work (Safety and Health Committee) Rules;

(8) Fire Officers may recommend any measures which they deem necessary for purposes of safety. It is

the responsibility of the officer to whom such recommendations are addressed to ensure that appropriate steps are taken to implement the measures with minimum delay. Any officer who fails to implement such recommendations will be held personally responsible for the consequences and in case of subsequent fire outbreak; he will be liable for disciplinary action and/or prosecution.

(9) Fire Prevention Committees should be established at the State Department and County levels to liaise with Government Fire Officers.

(10) The Authorized Officers shall ensure that:-

- (i) Health and Safety Committees are formed in all premises used by officers in their State Departments and/or agencies;
- (ii) The Committee members and all officers are trained; and
- (iii) Firefighting drills are conducted in all premises used by officers at least once in every twelve months in accordance with the requirement of the Factories and Other Places of Work (Fire Risk Reduction) Rules.

Notification of Fires

F.6 (1) All fires, however small, must be reported to the Principal Fire Officer or County Fire Officers or the Police immediately they are noticed. The building or premises so affected by fire must be guarded and no

evidence should be interfered with until investigations are over.

(2) It is the responsibility of whoever detects a fire to initiate alarm, inform the police and fire brigade, and try to control the fire during its initial stages.

(3) All Government buildings must be fitted with fire detectors, alarms, water storage tanks and pumps dedicated to firefighting only and separate from the normal water supply.

Medical Examination

F.7 The Authorized Officers shall ensure that all officers working in hazardous occupations undergo periodic medical examination in accordance with the Occupational Safety and Health Act.

Provision of Protective Equipment and Clothing

F.8 (1) The Government shall provide protective clothing and such other gear as shall ensure safety of employees providing services in risky or hazardous environments

(2) Employees deployed to risky and hazardous environments shall be encouraged to undertake regular medical checkups for early detection of any health effects that may arise from such risks and hazards, and for early containment of such risks and hazards.

Safe Use of Potentially Dangerous Equipment

F.9 The Authorized Officers shall ensure that all plants including hoists and lifts, steam boilers, other equipment and pressure vessels are properly maintained and that they undergo the statutory examinations as per the Occupational Safety and Health Act requirements.

Compensation to Government Officers In case of Injury or Death

F.10 The Work Injury Benefits Act (WIBA) provides for compensation for accidents and occupational diseases arising out of and in the course of an officer's employment. Only injury, diseases or death arising from occupational hazards are compensable. Besides the provisions of WIBA the Government has introduced the Group Personal Accident (GPA) Scheme which is administered by the Ministry responsible for Public Service

Reporting of Accident

F.11 (1) Immediately a work place accident, an accident in a Government vehicle or development of an occupational disease resulting in death or injury to an officer comes to the notice of the officer under whom he is directly deployed, the Supervisor should make a claim for compensation in accordance with the procedure set out below:-

- (i) In case of an accident resulting in the injury or death of an Officer Part I of the Directorate of Occupational Safety and Health Services, Accident Notification form (Form DOSH 1) should be completed in triplicate;
- (ii) The forms should then be dispatched to the Authorized Officer of the officer's State Department, the Occupational Safety and Health Officer of the region in which the accident occurred and for non fatal the Medical Practitioner who is attending to the injured officer;
- (iii) The detailed procedures are contained in the relevant forms which are obtainable from the Director of Occupational Safety and Health Services in the State Department responsible for Labour.

(2) Where the Director of Occupational Safety and Health Services finds anomalies or that the percentage given in the medical report is not in conformity with the provisions of the Work Injury Benefit Act (WIBA), he will decline to process the compensation. The Director

will inform the Authorized Officer of the officer's State Department of that decision giving reasons as to why he has taken the decision and if the officer qualifies for compensation, he shall advise on the action that should be taken to enable the officer's compensation to be processed.

(3) Where the Director declines to process the compensation, the Authorized Officer may either request the Director of Medical Services to convene a Medical Board for reassessment of the Government's liability to pay compensation or may request the Director of Occupational Safety and Health Services to appoint a medical panel for reassessment on the officer's diagnosis or injury.

Approval and Distribution of Compensation

F.12 (1) If it is considered by the Director that the Government is liable to pay compensation, he will send a demand note to the Authorized Officer of the State Department employing the injured, sick or deceased officer indicating the amount of money to be paid to the injured/sick officer or the dependants of a deceased officer.

(2) The payment of the money due for compensation to the injured or deceased officer shall be made within 90 days.

(3) The injured officer or the dependant(s) of deceased officer will sign a certificate of acknowledgement of payment and complete agreement form in triplicate.

(4) Copies of such certificate and of the appropriate agreement form should then be distributed as follows:

- (i) One copy to be handed to the officer or, in case of fatal accident, to the dependant(s);
- (ii) One copy to be returned to the Authorized Officer of the injured/deceased officer's State Department; and
- (iii) The other copy to be retained by the Director of Occupational Safety and Health Services.

Recourse to Court

F.13 (1) Where the officer or the State Department is not satisfied with the amount of compensation computed by the Director of Occupational Safety and Health

Services, they may raise an objection to the said Director or appeal to the Industrial Court.

Compensation Payable During Sick Leave Under WIBA

F.14 An officer on sick leave as a result of an accident or occupational disease will be entitled to full pay.

Source of Compensation Funds

F.15 (1) Authorized Officers shall source for funds from the National Treasury to meet the compensation of officers who are injured, develop occupational diseases or die in the course of their employment.

(2) The Accounting Officer in charge of Finance will make appropriate arrangement to ensure that each State Department access adequate funds to pay Work Injury Benefits to injured officers.

Reporting Injury, Serious Illness or Death

F.16 (1) In case of an officer's injury, serious illness or death an immediate report by telephone, or special means including e-mail should be made to the relevant Authorized Officer, stating relevant particulars of the officer.

(2) The next-of-kin must be informed immediately and be made aware of the circumstances under which the officer sustained injuries or met his death.

(3) In addition to the report referred to in paragraph (1), a Death Certificate should be submitted to the relevant Authorized Officer as soon as possible to facilitate processing of final dues.

(4) The accident should also be reported to the Director of Occupational Safety and Health Services within 24 hours in accordance with the requirement of the Occupational Safety and Health Act.

Group Personal Accident Policy

F.17 (1) The GPA covers permanent bodily injury or death arising from bodily injury caused solely by violent external visible means and provided such death occurs not later than six (6) calendar months after the accident.

(2) The GPA provides a 24 hour cover to Civil Servants whether within or outside the country unlike WIBA which covers the hours the officer is at his place of work.

(3) A claimant should not be compensated twice for the same loss under GPA and WIBA.

(4) The GPA offers extended cover to all Civil Servants as follows:-

- (i) Accident to employees while riding on motor cycles including pillion passengers;
- (ii) Accident to employees out of exposure to banditry and similar risks in the course of duty;
- (iii) Government drivers deployed to drive privately registered donor development partner vehicles.

Details on conditions for compensation and exclusions are found in the GPA Policy.

(5) Any claim submitted after one year will be time barred and will not be accepted as liability.

(6) All claims under GPA should be reported by the insured, dependants or nominee in writing.

(7) The benefits payable under the GPA and WIBA are:-

Cover	Benefit
Death under GPA	5 years Basic Salary
Death under WIBA	8 years Gross Salary (basic salary + regular allowances)
Permanent Total Disability under GPA	5 years basic salary x percentage awarded
Permanent Total Disability under WIBA	8 Years (basic salary + house allowance) x percentage awarded

Guidance, Counseling and HIV/AIDS Management in the Public Service

F.18 (1) The current challenges in the workplace and family environment affects the performance and wellbeing of an officer. To address these challenges, the Government has introduced guidance and counseling in the Service and a policy developed to regulate guidance and counseling.

(2) Every State Department shall establish a unit for provision of guidance and Counseling services in order to address the psychological needs of public servants during their entry, stay and exit from service.

(3) Professional Counselors will be deployed to State Departments to provide guidance and Counseling services to public servants.

(4) Counseling Services in the public service shall be free of charge and shall be limited to Public Servants. However, consultation with family members or support system may be extended when deemed necessary.

Counseling Services

F.19 (1) The Government shall provide counselling services to support employees who may require such services. Employees may seek guidance and counseling from such services when faced with psychological challenges.

(2) A supervisor may refer an officer for Counseling when he notices signs of low productivity, when the officer is a danger to himself and others or in case of an indiscipline problem.

(3) An officer shall have freedom to accept or reject counseling. This includes freedom to remain in the counseling relationship after it has been initiated.

(4) All cases for counselling shall be referred to the respective MDAs counselling units and/or the Ministry responsible for Public Service for better case management

HIV/AIDS Support Programme

F.19 (1) HIV and AIDS is a major challenge facing officers in and out of the office. It poses a big threat to

the individual, the family and the public service. It is in cognizance of this that the Government has put in place care and support programmes for the infected and affected officers to enable them remain productive.

(2) HIV/AIDS shall be treated like any other challenging issue at workplace. All officers shall have a role to play in the wider struggle to mitigate the effects of the pandemic.

(3) Policy guidelines have been developed to address HIV/AIDS challenges affecting Public Servants in the workplace.

Fighting Stigma and Discrimination

F.20 (1) An officer shall not be discriminated or stigmatised on the basis of HIV status. It is an offence for any person to discriminate another on the ground of actual, perceived or suspected HIV status in the work place.

(2) The Authorized Officers shall be expected to be at the forefront in providing a conducive working environment for the infected and affected officers. They shall be required to set up programmes that will instill positive behavior in the management of HIV and Aids.

(3) It shall be the responsibility of the Cabinet Secretaries to minimize the risk of HIV transmission by adopting First Aid/Universal infection control precautions at the workplace.

Screening for Purposes of Employment/ Recruitment

F.21 HIV screening shall not be a requirement for recruitment or for persons in employment. Screening shall be confidential, voluntary and shall be undertaken after counseling. There shall be no disclosure of HIV test results or of any related assessment results to any person without the written consent of the concerned officers.

Continuation of Employment

F.22 Officers with HIV-related illness shall be allowed to work for as long as they are fit to work and HIV infection should therefore, not be a cause for termination of employment.

Drug and Substances Abuse

F.23 (1) Addiction to drugs or substance will be treated like any other disease. An officer who is determined to deal with drug and substance abuse problem by engaging in rehabilitation services will be referred by his State Department to a Government doctor for evaluation.

(2) The Government will provide both in-patient and out-patient rehabilitation services within the limits provided by the prevailing legislation.

Employee Welfare and Wellness

F.24 (1) Authorized Officers shall develop and implement employee welfare and wellness programmes in the work place.

(2) The Public Service Commission shall review and make recommendation on conditions of service to address the new workplace changes.

PART IV : PERFORMANCE MANAGEMENT, TRAINING AND DEVELOPMENT

This part addresses matters pertaining to performance management, and training and development of employees in the public service.

SECTION G

PERFORMANCE MANAGEMENT

Introduction

This Section provides guidelines for Performance Management in the Public Service for enhancement of efficiency and effectiveness in service delivery.

G.1 (1) A Performance Management System (PMS) is a systematic process for getting better results from an organization, teams and individuals by managing performance within an agreed framework of planned goals, objectives and standards. A PMS is a set of tools, processes and actions that allows for maximization of the performance of employees and institutions.

(2) PMS also provides employees with a clear understanding of job expectations; regular feedback about performance; advice and steps for improving performance; rewards for good performance; and sanctions for poor performance. The overall goal of a PMS is to measure employee performance and ultimately the achievement of intended results for the organization.

Strategic Planning

G.2 (1) This is a process planning for achievement of overall long term goals of the Organization.

(2) Authorized Officers shall coordinate development and review of strategic plans in their respective State Departments. The plans will be the basis for setting performance targets for the organization which shall be cascaded to the individual level.

Performance Contracting

G.3 (1) Performance Contracting is a negotiated process in which State Departments set their performance targets based on their mandates, functions and strategic objectives.

(2) The State Department responsible for performance Management shall issue guidelines to the Public Service agencies in implementation of performance contracts.

(3) Performance contract should be anchored on national development goals. It should be cascaded to all departments, sections, levels and cadres of employees. For the purpose of complete integration of the process, it will also apply to staff performing national government functions in the Counties. The integration will include linking the Performance Contracts with the Performance Appraisal System (PAS) and the Performance Rewards and Sanctions Framework.

Staff Performance Appraisal System

G.4 Staff Performance Appraisal system (SPAS) is predicated upon the principle of work planning, setting of agreed performance targets, feedback and reporting. It is linked to other human resource systems and processes including staff development, career progression, placement, rewards and sanctions.

Objectives of Performance Appraisal

G.5 (1) Staff Performance Appraisal is a critical component of the human resource management function in the Public Service. The overall objective of the appraisal system is to manage and improve performance in the Public Service by enabling a higher level of staff participation and involvement in planning, delivery and evaluation of work performance.

(2) The specific objectives are to:-

- i. Link individual performance targets with organizational strategic objectives and workplan;
- ii. Promote communication between Appraisee and Supervisor with continuous feedback on work progress;
- iii. Set the basis on which an officer's performance is monitored and evaluated as stipulated in the individual work plan;
- iv. Align operational and financial performance targets with budgetary provisions
- v. Assess the learning and development needs of staff on a timely basis;
- vi. Provide information for decision making on administrative and human resource issues such as renewal of contracts, promotions, delegation of duties, training, deployment, rewards and sanctions.

Scope of Application

G.6 (1) The SPAS shall apply to all categories of staff in the Public Service.

(2) The prescribed appraisal form will be completed by all officers in the Public Service in consultation with the supervisors.

(3) All newly employed officers will be required to agree on performance targets with the supervisor and complete the Staff Performance Appraisal Forms within three (3) months of employment.

(4) All promoted/redeployed officers will be required to agree on new performance targets with the supervisor and complete the Staff Performance Appraisal Forms within one (1) month of promotion/ redeployment.

(5) The primary responsibility for implementing the SPAS rests with the Authorized Officer.

Work Planning and Setting of Performance Targets

G.7 (1) Prior to the beginning of the performance period, Departments will prepare work plans based on their strategic plans. The Departmental Work Plans should include the Departmental priority objectives from which individual performance targets will be derived. Departmental Heads will meet with staff under their direct supervision to discuss and ensure that the objectives and performance targets of the department are understood.

(2) The individual work plans will be derived from the Departmental Work plans and officer's job description. The work plan will briefly describe the performance targets or expected results on specific assignments and activities for which the staff member is responsible during the performance year;

(3) The Appraisee will hold discussions with the immediate Supervisor to agree on the work plan. The performance targets shall thereafter be set as agreed in the discussions by latest 31st July of each year. For each performance target to be assessed there will be performance indicators.

Appraisal Period

G.8 The appraisal period will cover one (1) year starting from 1st July to 30th June of the following year. The Performance Appraisal reflects the summation of the year's performance including quarterly and mid-year reviews.

Staff Performance Appraisal Process

Strategic Objectives

G.9 The strategic objectives will be derived from the State Department's strategic plan and performance contract and cascaded to the department, division and individual employees.

Continuous Performance Appraisal

G.10 Performance appraisal is an on-going process throughout the performance period. Milestones over the review period should be documented and maintained in the Appraisee's personal file.

Performance Measurement

G.11 Performance Measurement shall be undertaken in accordance with the SPAS guidelines issued to the Service.

Mid-Year Performance Review

G.12 (1) The main purpose of the mid-year Performance Review is to accord both the Supervisor and Appraisee the opportunity to jointly review the progress made by the Appraisee in accomplishing the assignments agreed on at the beginning of the Appraisal period.

(2) The review which should be in the form of discussions, should be centred on what has been achieved, any constraints experienced and whether there is need to vary the initial assignments in order to accommodate any unforeseen circumstances.

(3) Any changes, additions or removal of performance targets should only be made in the event that there have been significant changes in the nature of functions carried out by the Appraisee and which may necessitate revision of performance targets.

(4) The Supervisor should, after discussions with the Appraisee at the Mid-year Performance Review comment on the Appraisee's performance.

(5) In the event that the Supervisor leaves the

Department/Ministry, he/she will be required to appraise the performance of the Appraisee(s) on pro-rata basis.

End of Year Appraisal Process

G.13 The End of Year Appraisal takes place at the end of the reporting period. The following will constitute the end of year evaluation process.

- (i) The Supervisor and Appraisee are required to meet at the end of the year to discuss the overall performance for the whole appraisal period;
- (ii) Prior to the meeting the Appraisee should prepare a preliminary report on the extent to which set targets were achieved as agreed at the beginning of the Performance Year with clear performance indicators.

Rewards and Sanctions

G.14 (1) The overall goal of the Rewards and Sanctions is to establish a basis for rewarding exemplary performance and administering sanctions for poor performance, motivate employees to have positive attitude to work and to enhance productivity in the public service. This will also create linkages between institutional and individual performance.

(2) The Public Service Commission will be responsible for the administration of the rewards and sanctions policy. The Commission will also handle cases of appeals after employees have exhausted all review mechanisms.

Types of Rewards and Sanctions

G.15 The provision and types of rewards and sanctions shall be as set out in the Rewards and Sanctions Framework for the Public Service.

Employee Performance Management Committee (EPMC)

G.16 (1) Each public body shall establish an Employee Performance Management Committee.

(2) In the case of a State Department the EPMC shall consist of the following members:

- (i) The Secretary responsible for administration who shall be the Chairperson
- (ii) Heads of Departments;
- (iii) The head of the human resource function who shall be the Secretary to the Committee.

(3) In the case of a State Agency, the Committee shall comprise of the following members.

- (i) A senior officer at the grade immediately below the CEO appointed by the Chief Executive Officer, who shall be the Chairperson;
- (ii) The heads of departments; and
- (iii) The head of human resource function who shall be the Secretary to the Committee.

(4) The functions of the Employee Performance Management Committee shall be to:

- (i) Consider and moderate individual performance scores and make recommendations to the Authorized Officer.
- (ii) Make recommendations to the Authorized Officer on rewards or sanctions to be imposed on any employee; and
- (iii) Make recommendations on planned performance improvement for an employee.

Rules of Conduct for the Employee Performance Management Committee

G.17 (1) Members of the Employee Performance Management Committee shall be expected to perform their duties with diligence, integrity, impartiality and confidentiality.

(2) In the event that there is disagreement between the supervisor and an appraisee on assessment of performance, the Committee will moderate the scores based on verifiable performance indicators and make recommendation to the Authorized Officer.

(3) Members of the Employee Performance Management Committee will not discuss or make recommendations in respect of their own performance reports. The Principal Secretary shall complete the Performance Appraisal reports for the members of the Committee and make appropriate recommendations to the Cabinet Secretary.

(4) Members of the Employee Performance Management Committee may also be eligible for the awards, provided that they excuse themselves from participating in any decision-making regarding any award for which they are being considered.

EPMC Recommendations

G.18 (1) Authorized Officers shall, on the recommendation of the Employee Performance Management Committees, reward excellent performance and apply the appropriate intervention(s) in accordance with the existing Service Regulations. The Supervisor may however, recommend other specific interventions depending on the insight gained during the appraisal.

(2) The performance appraisal report shall form the basis for placement, promotion and mobility of staff within and across the Civil Service.

Appeals on Staff Performance Appraisal process

G.19 Appeals on performance assessment shall be submitted to the Public Service Commission for consideration.

SECTION H

TRAINING AND DEVELOPMENT

Introduction

H.1 (1) The Government policy on training is to ensure continuous upgrading of Public Servants' core competencies, knowledge, skills and attitudes including their ability to assimilate technology to enable them create and seize opportunities for social advancement, economic growth and individual fulfillment. Public Institutions shall take into account the objectives that the human resources in the public service shall be developed in order to:

- (i) Continuously improve professional knowledge and skills needed for better performance of duties by public officers and public bodies;
- (ii) Bring together the right attitudinal orientation of public officers;
- (iii) Promote responsiveness to the prevailing socioeconomic and political environment in which the public bodies operate and scientific and technological developments;
- (iv) Enhance commitment to democratic values, partnership and participative decision making;
- (v) Achieve a factual and scientific approach to decision making;
- (vi) Achieve high performance in every public body or public office;
- (vii) Promote and protect human rights and freedoms as provided for in the Constitution; and
- (viii) Promote an ethical environment for public service delivery in accordance with the national values and principles of governance and principles and values of public service as provided for in the Constitution.

(2) The mandate to develop human resources in the Public Service is vested in the Public Service Commission.

(3) Details on the administration and implementation of training in the Public Service are contained in the Public Service Commission Act (PSC Act) 2017, Public Service Regulations, 2020, Human Resource Development (HRD) Policy and training guidelines issued by the Commission.

(4) Public officers shall be eligible for at least five (5) days training in a year while newly recruited or transferred officers must be inducted within three (3) months of joining public organizations.

(5) All training shall be based on identified training needs.

Management and Co-ordination of Training

H.2 (1) The planning and co-ordination of training and capacity building in the Public Service has been delegated to the Ministry responsible for Public Service. Human Resource Management and Development Units, established in Ministries/State Departments, shall be responsible for the training function.

(2) Authorized Officers shall discharge the function through Human resource management advisory committees.

(3) Nomination and selection for individual and group training shall be based on prioritized training projections. The approved programmes should address national, organizational and individual goals.

(4) Selection of trainees shall be in accordance with the national values and principles of governance, values and principles of public service, leadership and integrity and the Bill of rights.

Training Needs Assessment

H.3 (1) Training Needs Assessment is a performance audit that generates and provides information to assess the inadequacy of knowledge and skills which inhibits an organization from attaining its objectives. Training in the Public Service shall be based on Training Needs Assessment which shall be conducted after every three (3) years in each State Department.

(2) State Departments are required to prepare training projections based on Training Needs Assessment to guide the human resource management advisory committees in nominating officers for training.

(3) Selection of trainees for all training programmes will be based on identified needs and will emphasize on training for performance improvement that address individual, organizational and national goals.

(4) Authorized Officers shall present to the Commission the training projections for public officers in the public body for approval and monitoring.

Training Programmes

H.4 (1) Training programmes comprise both short and long term courses in specific professions that are intended to impart required knowledge, skills and attitudes to enhance staff performance.

(2) State Departments may design specific in-house training programmes which address the identified training needs. In addition training can be provided under institutional training both locally and abroad.

(3) In designing training programmes, State Departments should ascertain the availability of:-

- (i) Professionally qualified and experienced trainers;
- (ii) Training programmes that are cost-effective; and
- (iii) An effective evaluation and feedback system to assess the impact of training on performance.

(4) The government will continually develop its employee's professional knowledge and skills and encourage them to join relevant professional bodies. The government will establish mechanisms for supporting employees where the career guidelines require them to be members of a professional body.

Training Levy

H.5 (1) Officers undertaking courses lasting more than four (4) weeks and above in local training institutions will be required to contribute to the cost of their training at the rate of ten percent (10%) of their basic salary per month for the duration of the course.

(2) Officers attending courses lasting more than four (4) weeks in institutions outside the country will contribute at the rate of twenty percent (20%) of their basic salary per month for the duration of the course. This is regardless of whether the courses are sponsored by the Government of Kenya or by Development Partners through bilateral or multilateral arrangements.

(3) Officers undertaking part-time or full time self-sponsored courses are however, exempted from paying the training levy.

(4) Officers undertaking sponsored training offered outside the country through open/and or distance - learning or e-learning/online mode shall not be subjected to twenty percent (20%) training levy. Where part of the training period will require the officer to travel to the hosting institution, the levy will be calculated on pro-rata basis.

(5) Accounting Officers should ensure that the officers' training contributions are remitted in lumpsum for the duration of the course to the Ministry responsible for Public Service before the commencement of the course.

Induction Training

H.6 (1) Induction and orientation training is expected to help an employee familiarize with the work environment and requirements.

(2) Public Institutions are expected to conduct induction training within three (3) months for newly recruited officers and those who have joined the institutions on transfer, promotion and re-designation.

(3) Newly appointed public officers shall not be assigned any duties before they undergo an induction.

Eligibility for Training

H.7 (1) Public Officers at all levels will be eligible for at least five (5) days training in a fiscal year.

(2) An officer who attends a long term course lasting six (6) months and above will be required to work for two (2) years before he can qualify for selection for another long course.

Annual Training Policy Statement

H.8 (1) The Commission shall issue an Annual Training Policy Statement to address training needs in the Public Service for each financial year.

(2) Authorized Officers shall abide by policies and guidelines issued by the Commission for the development of human resources in public bodies.

Nomination and Approval for Government Training

H.9 (1) Academic and professional certificates attained without requisite authorization, approval or are subject to irregularity of any kind shall not be used as the basis for promotion, re-designation or appointment to a public office.

(2) Officers wishing to be sponsored for a highly technical training program which is not a requirement in the relevant career guidelines should first re-designate to the cadre where the training sought is relevant or a requirement.

(3) Public agencies should always identify their training needs, prioritize, plan and implement appropriate training interventions in collaboration with the relevant institutions including the Ministry responsible for Public Service and the Commission.

(4) Public Officers at all levels will be eligible for at least five (5) days training in a fiscal year.

(5) An officer who attends a long term course lasting six (6) months and above will be required to work for two (2) years before he can qualify for selection for another long course.

Course Approval

H.10 (1) The Authorized Officers will grant course approval to officers proceeding on authorized training in accordance with service regulations. Officers shall obtain course approval before proceeding for training.

(2) Authorized Officers shall be responsible for course approval for local training, on recommendation of the respective Human Resource Management Advisory Committee.

(3) Course approvals and coordination of foreign training will be undertaken by the Ministry responsible for Public Service.

(4) The Commission shall be represented in Committees of the Ministry responsible for Public Service on decisions relating to Foreign training programs under development partners, bilateral and multilateral arrangements.

(5) Quarterly reports on all training undertaken in MDAs shall be submitted to the Commission

(6) Where an officer is dissatisfied with a decision on award of training opportunities the officer may appeal to the Commission for review after exhausting the internal appeals mechanisms at the MDAs.

Undergraduate Training

H.12 (1) The government shall not sponsor serving officers for undergraduate programmes. Where there is need for skills at this level, the government will procure the same from the labour market. However, employees who wish to sponsor their training shall be granted approval.

(2) Notwithstanding (1) above and in a bid to ensure the marginalized and minority groups and persons with disabilities are represented at all levels of the public service, public institutions may recommend sponsorship of officers for relevant undergraduate degree programmes, based on identified training needs in line with affirmative action programmes.

(3) Any recommendations made in (2) above shall be forwarded to the Public Service Commission for approval.

(4) The affirmative action for under-graduate degree programmes shall remain in force until such time

that a representative public service is achieved.

Masters Programmes

H.13 The government will continue to support and approve training at Masters level for officers requiring the skills at this level for performance and career progression as prescribed in the respective career progression guidelines. However, the government shall not support officers for second Masters programmes.

PhD Programmes

H.14 (1) PhD training will continue being sponsored and approved for officers in training and research institutions. However, officers wishing to pursue the PhD under the self-sponsorship arrangement will be approved on condition that the area of study is relevant to their duties, has completed two (2) years' service since the last long course and the approval shall not provide for reimbursement of training expenses.

(2) The government will consider financial assistance or approve request for training at this level on a case by case basis provided that the area of study is a national priority or is focused towards an organization's strategic needs as outlined in its strategic plan and the course is relevant to the officer's current or potential future job.

Authentication of academic and professional certificates in the public service

The responsibility to ensure officers who are recruited to the public service are in possession of valid academic and professional certificates vests with the Public Service Commission.

H15. Authorized officers shall -

1. Be required to validate academic and professional certificates requisite for the award of appointment, promotions or re-designation in the Public Service.
2. Undertake an audit of academic and professional certificates of all newly appointed officers on regular basis and ensure that additional qualifications provided by serving officers are authenticated.
3. Take disciplinary action against any officer found in possession of forged certificates including termination of service and dismissal in accordance with the provisions of the prevailing Public Service norms and standards.
4. Subject the officer implicated in procurement of appointments into the public service using forged or fraudulently obtained academic and professional certificates to a criminal process in addition to initial action of dismissing the officer.

E-Learning/Digital Training and Development

H. 16 (1) Emergence of the pandemics such as COVID-19 and resultant challenges in public service delivery calls for appropriate measures that respond to disasters and crises while maintaining service delivery standards to the citizenry.

(2) Adoption of workplace measures such as remote or flexi working arrangements, virtual meetings and technology- based service delivery in this era of Information technology and budgetary constraints ensures effectiveness and consistency in public service delivery.

(3) E-Learning/Digital training support and ensure sustained training and development of staff while also ensuring uninterrupted delivery of service.

(4) To facilitate continuity of training and capacity building initiatives, Public Service Institutions shall institutionalize e-learning platforms and put in place guidelines for virtual training and development and tele-counselling for psycho-social support for those infected and/or affected.

Subscription to Professional Bodies

H. 17 (1) The Government shall support employees who are members of recognized professional bodies to remain in good standing through sponsorship of trainings geared towards Continuous Professional Development.

(2) The employee will meet the cost of registration and the initial subscription.

(3) The Government will meet the costs of the subsequent subscriptions, practicing certificate and cost of continuing professional development training but this will be limited to not more than two professional bodies provided it is a professional requirement.

Training revolving fund

H.18 (1) The Government has set up a Training Revolving Fund to assist public officers access funds at subsidized interest rates for training in order to enhance knowledge and skills considered critical for performance improvement and achievement of national development goals.

(2) Officers, who have been projected for training in critical areas and the State Departments have no funds to sponsor them within the fiscal year, may be advised to seek funds from the training revolving fund.

(3) The Human Resource Management Advisory Committee will vet candidates who have applied for the loan using the set guidelines.

Training Bond

H.19 (1) The Government shall bond serving officers proceeding on approved courses of training locally or abroad lasting six (6) months and above to enable the government to benefit adequately from its investment in training.

(2) Where a State Department considers the value/cost of a course lasting less than six (6) months to be high and constraining the organization's training budget, the officers will be bonded for a minimum period of one year but not exceeding five (5) years.

(3) The bond period will be determined by the duration of the course as follows:-

	Training Period	Bond Period
(i)	Six to Twelve Months	One (1) Year
(ii)	One (1) year to two (2) years	Two (2) years
(iii)	Between two (2) years and Three (3) years	Three (3) years
(iv)	More than Three (3) years	As per the duration of the course but not exceeding Five (5) years

(4) The bond amount will be the total cost of the training.

(5) In case of default, the bondee and/or surety will be required to redeem the bond amount on prorata basis.

(6) Details on the administration and implementation of the training bond are contained in the Public Service Training Bond Guidelines.

Skills Inventory

H.20 (1) Authorized Officers are expected to develop, update and maintain a skills inventory for all officers in their respective State Departments for purposes of identifying the available, and the required skills. The inventory will guide the training, recruitment and succession management decisions.

(2) It shall be the responsibility of the officers to upload their certificates through the Government Human Resource Information System (GHRIS).

Allowances Payable to Government Sponsored Trainees

H.21 (1) Officers undertaking long courses abroad will be paid respective countries' living allowance to cater for subsistence, accommodation, outfit and excess baggage.

(2) Officers attending long courses on full time basis in local institutions and outside their duty stations will be eligible for living allowance.

(3) Government sponsored officers attending, part-time, evening, sandwich and holiday module courses will not be entitled to a living allowance or stipend.

(4) Officers sponsored by the Government to undertake courses at Government Training institutions are not entitled to any living allowance or stipend.

(5) Other Allowances paid to officers undertaking courses locally and abroad are:-

- (i) Research Allowance;
- (ii) Dissertation/Thesis Allowance;
- (iii) Project Allowance;
- (iv) Book Allowance.

(6) The applicable rates are as stipulated in circulars issued by Government.

Incidental Expenses

H.22 (1) The Government will meet the cost of passport, pre-departure medical examination, visa, vaccination and inoculation expenses for foreign training.

(2) The Government will meet the cost of transport and travelling to and from the institution at which the course is held. However, the trainee will meet the cost of local travel.

Annual Leave

H.23 An officer who has been on training shall be eligible for his annual leave only for the year he resumes duty in addition to any leave days carried forward before proceeding on training.

Donor Funded Courses

H.24 (1) Where a training award/scholarship for a course organized under bilateral/multilateral arrangements caters for only tuition and accommodation but does not include meals, out of pocket and stipend, the officer will be eligible for 25% of the living allowance applicable to the designated country.

(2) Where a medical insurance cover is not provided under a Technical Cooperation Training Award, the Government will meet the cost of the medical insurance cover for the officer.

Workshops, Retreats and Conferences

H.25 (1) Public officers attending workshops, retreats and conferences may be paid allowances at rates determined by the Government from time to time.

(2) Workshops which are meant to review, develop and produce reports should be treated as retreats and should be for a maximum duration of ten (10) days.

(3) The duration of workshops and conferences should not exceed three weeks. Any workshop and conference beyond three (3) weeks will be considered as a course and will be subjected to the stipulated provisions for courses.

(4) No officer should be involved in more than one role in a seminar/workshop/conference at a given time.

Reimbursement of Tuition and Examination Fees

H.26 (1) An officer who on his own initiative and at his own time undertakes and passes a course relevant for his career growth and which is administered by a recognized training institution will be eligible for refund of 50% of the amount spent on tuition and examinations provided:-

- (i) Prior approval of the course had been granted by the Authorized Officer;
- (ii) The officer has not been sponsored for the same course before; and
- (iii) The officer avails the original certificate for the course and a training report.

(2) Candidates who sit for the examinations administered by the Public Service Commission will be required to pay a prescribed examination fee. The rates of fees and mode of payment for the examinations will be notified when the dates for each examination is announced.

(3) Candidates who pass examinations administered by the Commission will be refunded the full amount of the prescribed examination fee by their respective Accounting Officers.

Industrial Attachment

H.27 (1) Industrial attachment is an important component of education and training. It provides attachees with opportunities to acquire practical aspects of their respective areas of specialization in a real work place environment. The government will support industrial attachment by providing opportunities to students in tertiary and higher education institutions.

(2) Attachment will be undertaken during the course and the duration will be for a maximum period of three (3) months.

(3) The attachment shall be in line with the values and principles of public service and the existing labour laws.

Internship

H.28 (1) Trainees graduating from training institutions join the labour market with academic and theoretical approaches to work and hence require practical exposure in a real work environment.

(2) The Public Service uses internship programmes as part of on the job training for the purpose of moulding interns to become responsible citizens who will contribute effectively to the socio-economic development of the country.

(3) Internship programmes shall be guided by the relevant provisions of the Constitution, relevant professional bodies and other policy guidelines and shall not exceed one (1) year.

PART V: CODE OF CONDUCT, DISCIPLINARY CONTROL AND LABOUR RELATIONS

Introduction

This Part addresses the code of conduct, disciplinary control and labour relations in the public service.

SECTION J

CODE OF CONDUCT

J.1 (1) This Section contains general rules of conduct to be observed by a public officer so as to maintain integrity and uphold the dignity of the public office to which he has been appointed. Every public officer occupies a special position within the Public Service and should ensure that his conduct both in public and in private life does not bring the Service into disrepute.

(2) Guidelines on disciplinary control in the Public Service and the procedure to be followed in cases of breach of discipline are contained in the Public Service Commission Act, Public Service Commission Regulations and the Discipline Manual for the Public Service.

(3) In addition, an employee is required to comply with the provisions of Chapter Six of the Constitution on Leadership and Integrity and Articles 10 and 232 of the Constitution; Leadership and Integrity Act, 2012; Public Service (Values and Principles) Act, 2015; Public Officer Ethics Act, 2003; Anti-corruption and Economic Crimes Act, 2003; Labour Relations Act, 2007 and the Employment Act, 2007.

(4) Officers are required to adhere to their respective professional code of conduct.

(5) It is imperative that every public officer adheres to these rules of conduct, and such other rules which may be introduced from time to time.

Office Hours

J.2 (1) Public Officers are required to work 40 hours spread over 5 days in a week. Government office hours are as follows:

(i) Nairobi and all other Regions

Monday to Friday: 8.00 a.m. to 1.00 p.m.
2.00 p.m. to 5.00 p.m.

(ii) Coastal and Northern Kenya

Monday to Friday: 7.30 a.m. to 12.30 p.m.
2.30 p.m. to 5.30 p.m.

(2) Though the general office hours will be as stated above, utilization of staff outside these hours when there is need for their services will not be restricted, provided the officer renders a minimum of 40 hours per week.

Public Holidays

J.3 (1) The following days shall be observed as public holidays in accordance with the relevant parliamentary legislation and include:

New Year's Day	1 st January
Good Friday	*
Easter Monday	*
Labour Day	1 st May
Madaraka Day	1 st June
Idd-ul-Fitr	*
Idd-ul-Adha	*
Huduma Day	10 th October
Mashujaa Day	20 th October
Jamhuri Day	12 th December
Christmas Day	25 th December
Utamaduni/Boxing Day	26 th December

* In accordance with the relevant religious calendar.

(2) In addition to the above public holidays, Idd- ul- Haj and Diwali, will be observed as public holidays by officers professing these faiths.

Rule of law

J.4 A public officer shall carry out his/her duties in accordance with the law and shall not violate the rights and freedoms of any person enshrined under Chapter Four of the Constitution.

Public trust

J.5 A Public Office is a position of trust and the authority and responsibility vested in a public officer shall be exercised in the best interest of the country.

Performance of duties

J.6 A public officer shall, to the best of his/her ability carry out the duties of the office efficiently and honestly, in a transparent and accountable manner, keep accurate records and documents and report truthfully on all matters of the organization which he/she represents.

Professionalism

J.7 (1) A public officer shall carry out his duties professionally and treat fellow public officers with consideration and respect. He shall also act in a manner that maintains public confidence in the integrity of the office.

(2) A public officer who is a member of a professional body shall observe the ethical and professional requirements of that body.

Financial integrity

J.8 (1) A public officer shall not use the office to unlawfully or wrongfully enrich himself or any other person.

(2) A public officer shall not maintain a bank account outside Kenya except in accordance with an Act of Parliament or seek or accept a personal loan or benefit in circumstances that compromise his integrity.

Pecuniary Embarrassment

J.9 (1) Pecuniary embarrassment from whatever cause, will be regarded as necessarily impairing the efficiency of an officer and rendering him liable to disciplinary proceedings.

Moral and ethical requirements

J.10 A public officer shall:

- (i) not engage in activities that amount to abuse of office;
- (ii) accurately and honestly represent information to the public; and
- (iii) not discriminate against any person.

Gifts or benefits in kind

J.11 (1) A public officer is prohibited from accepting or requesting for gifts whether in the form of money, goods, free passages or other personal benefits and from giving such gifts, unless:

- (i) the gift is non-monetary and does not exceed the value prescribed by regulation; or
- (ii) the gift is from or to a relative or friend given on a special occasion recognized by custom.

(2) A gift or donation to a public officer on a public or official occasion will be regarded as a gift or donation to the Republic and shall be delivered to the respective State Department unless exempted under an act of Parliament.

(3) When presents are exchanged between public officers acting on behalf of the Government in ceremonial occasions with other Governments or their representatives, the presents received will be handed over to the Government and any present in return will be given at the Government's expense.

Wrongful or unlawful acquisition of property

J.12 A public officer shall not use his office to wrongfully or unlawfully influence the acquisition of property.

Conflict of interest

J.13 (1) A "conflict of interest" involves a conflict between the public duty and the private interests of a public officer in which the officer's private capacity interests would improperly influence the performance of their official duties and responsibilities.

(2) A public officer:

- (i) Shall use the best efforts to avoid being in a situation where personal interests conflict or appear to conflict with the public officer's official duties;
- (ii) Shall not hold shares or have any other interest in a corporation, partnership or other body, directly or through another person, if holding those shares or having that interest would result in the public officer's personal interests conflicting with his official duties;
- (iii) whose personal interest conflict with his official duties shall declare the personal interests to his supervisor or other appropriate body and refrain from participating in any deliberations with respect to the matter;

(iv) shall not award a contract, or influence the award of a contract to:-

(a) Himself/herself,

(b) A spouse or relative,

(c) A business associate, or

(d) A corporation, partnership or other body in which the officer has an interest;

(v) who is serving on a full time basis shall not participate in any other gainful employment;

(vi) shall not allow himself to be influenced in the performance of his duties by plans or expectations for or offer of future employment or benefits and shall disclose, in writing to the Commission all offers of future employment or benefits that could place him in a situation of conflict of interest; and

(vi) shall not be engaged by or act for a person or entity in a matter in which the officer was originally engaged in as a public officer, for at least two years after leaving the public office.

(3) In this section "personal interest" includes the interest of a spouse, relative, or business associate.

Acting for foreigners

J.14 No public officer shall, in any manner that may be detrimental to the security interests of Kenya, be an agent for, or further the interests of a foreign government, organization or individual.

Care of property

J.15 A public officer shall take all reasonable steps to ensure that property that is entrusted to his care is adequately protected and not misused or misappropriated.

Misuse of official information

J.16 A public officer shall ensure that confidential or secret information or documents entrusted to his care are adequately protected from improper or inadvertent disclosure.

Falsification of records

J.17 A public officer shall not falsify any records or misrepresent information to the public.

Political neutrality

J.18 A public officer shall not, in or in connection with the performance of his duties as such act as an agent for, or so as to further the interest of a political party or indicate support for or opposition to any political party or candidate in an election or engage in political activity that may compromise the political neutrality of his office.

Impartiality

J.19 A public officer shall at all times carry out the duties of the office with impartiality and objectivity in accordance with Articles 10, 27, 73(2)(b) and 232 of the Constitution.

Collections and Harambees

J.20 A public officer shall not use his office or place of work as a venue for soliciting, collecting harambees, either as a collector or promoter of public collection, obtain money or other property from a person using his official position.

Conduct of private affairs

J.21 A public officer shall conduct private affairs in a manner that maintains public integrity of the office; pay taxes due from him within the prescribed period and not neglect their financial or legal obligations.

Bullying

J.22 A public officer shall not bully any person. For the purpose of this section 'bullying' includes repeated offensive behavior which is vindictive, cruel, malicious or humiliating and is intended to undermine a person.

Sexual Harassment

J.23 A public officer shall not sexually harass a member of the public or fellow public officer. "Sexually harass" includes doing any of the following, if the person doing it knows or ought to know that it is unwelcome:

- (a) Making a request or exerting pressure for sexual activity or favours;
- (b) Making intentional or careless physical contact that is sexual in nature; and
- (c) Making gestures, noise, jokes or comments including innuendos regarding another person's sexuality.

Nepotism

J.24 A public officer shall not practice undue favouritism to their relations and close relatives at the expense of the service.

Acting through others

J.25 (1) A public officer contravenes the code if he causes anything to be done through another person that would constitute a contravention of the code if done by the public officer, or allows or directs a person under their supervision or control to do anything that is in contravention of the code.

(2) Contravention shall not apply where anything is done without the public officer's knowledge or consent or if the public officer has taken reasonable steps to prevent it.

(3) A public officer who acts under unlawful direction shall be responsible for his action.

Reporting improper orders

J.26 A public officer shall report to the Authorized Officer or the Public Service Commission, as the case may be, any order required of him that he shall consider improper or unethical.

Declaration of Income, Assets and Liabilities

J.27 (1) Every public officer shall on initial appointment and bi-annually thereafter submit a declaration of income, assets and liabilities of himself, spouse(s) and dependent children under eighteen (18) years of age to the Public Service Commission. The officer shall also make a similar declaration on exit from the service.

(2) An officer who fails to submit a declaration or clarification as required, or who submits information that he knows is false or misleading, shall be liable to disciplinary action.

(3) If an investigation discloses that the public officer has contravened the Code of Conduct and Ethics, the appropriate disciplinary action will be taken against the officer; or if the Commission is of the view that civil or criminal proceedings ought to be considered, the matter may be referred to the Attorney General.

Uniforms for Officers

J.28 (1) Officers offering common services such as Receptionists, Drivers and Support Staff and are required to wear uniforms will be issued with at least two (2) pairs of appropriate uniform on deployment. Issues of uniforms and dates of their issue must be recorded in the Stores Ledger.

(2) All officers who are provided with uniform will be required to maintain them in a clean and decent condition and to wear them at all times while on duty.

(3) Disciplinary action will be taken against any officer who fails to observe this Regulation.

Dress Code

J.29 (1) All public officers are required to be well groomed and decently dressed to maintain an appropriate standard of dress and personal hygiene in public and private.

(2) Employees may put on branded corporate attires for their respective State Departments/agencies, as may be guided by their respective agencies.

SECTION K

DISCIPLINARY CONTROL

Introduction

K.1 The objective of disciplinary control is to create a motivated and dedicated Public Service which upholds the rules of conduct and work ethics for optimal service delivery. It is expected that public officers will maintain integrity and uphold the dignity of the office to which they are appointed. Further, discipline cases shall be dealt with expeditiously, efficiently, lawfully and in a procedurally fair manner.

Disciplinary Powers

K.2 (1) The power to exercise disciplinary control and removal of Public Officers are vested in the Public Service Commission as stipulated in the Constitution and the Public Service Commission Act and regulations.

(2) The Public Service Commission has delegated the following disciplinary powers to Authorized Officers as per the Public Service Commission regulations and instructions issued to the service from time to time:-

- (i) Interdiction of officers in Job Group 'U'/CSG 3 and below;
- (ii) Suspension of officers in Job Group 'U'/CSG 3 and below
- (iii) Reprimand of any officer;

- (iv) Recovery of the cost or part of the cost of any loss or breakage caused by default or negligence, provided no such cost has been recovered by surcharge action under the appropriate financial instructions or regulations;
- (v) Deferment of salary increment;
- (vi) Deferment of promotion; and
- (vii) Dismissal and reduction in rank in respect of officers in Job Groups 'P' and below, with the exemption of all officers who have qualified for pension or have served for an aggregate of fifteen (15) years.

Disciplinary procedure

General provisions

K.3 (1) Disciplinary cases dealt with under delegated powers shall be processed through the respective Human Resource Management Advisory Committee.

(2) If criminal proceedings are instituted against an officer or where an officer has been acquitted of a criminal charge in a court of law, the Authorized Officer shall not be prevented from dismissing him or otherwise punishing him on any other charge arising out of his conduct in the matter.

(3) Where an officer has been charged on desertion of duty, the letter shall be addressed to his last known address by registered and electronic mail.

(4) The officer should be notified in writing, be given the particulars of the misconduct as preferred and reasonable opportunity to respond to the allegations.

(5) Application of other interventions in resolving the discipline cases such as counseling, guidance and training and dispute resolution mechanisms shall be considered.

(6) Right of appeal and application for review of disciplinary related decisions.

(7) Except disciplinary cases that are subject to court proceedings, all other cases should be dealt with promptly and finalized within a period of six (6) months. Where it is found impracticable to do so, the Authorized Officer shall report individual cases to the Public Service Commission explaining the reason for the delay.

Specific Provisions

K.4 (1) In the event of initial instance(s) of minor offences committed by an officer, his/her supervisor will issue a verbal warning and inform him or her of what is likely to befall him/her in case the offence(s) is repeated in future. The verbal warning should be in form of structured discussion which may entail counseling. A copy of the record for such a warning indicating that there was a meeting between the supervisor and the officer should be kept by the supervisor.

(2) The procedures to be followed by Authorized Officers in dealing with discipline cases are as follows:-

- (a) In respect of officers in Job Group 'R' and above:-
 - (i) Carry out a preliminary investigation and consultation as to the circumstances surrounding the act of misconduct.
 - (ii) Issue the public officer with statement of the alleged offence ('show cause' letter) and the charges framed against him/her and invite him to state in writing the grounds, if any, on which he relies to exonerate himself/herself.
 - (iii) The officer shall respond to the charges within twenty one (21) days from the date of the 'show cause' letter.
 - (iv) After conducting investigations and disciplinary hearing, the case shall be presented to the Human Resource Management Advisory Committee for deliberation and recommendation.

- (v) If the officer fails to respond within the specified period or if in the opinion of the Authorized Officer, the explanation given is not satisfactory he shall forward the case with copies of the charge and the officer's reply if any, with his comments to the Commission for decision.
- (vi) If the Commission is of the opinion that further investigation is necessary before a decision is made, it will direct the Authorized Officer to do so.
- (vii) The Commission's decision shall be communicated to the officer by the Authorized Officer who shall inform the officer of the right to apply for review where applicable.
- (viii) Where a public officer is found culpable of a disciplinary offence, the decision will be communicated to the relevant professional body, where applicable.

K.5 Where the officers are in Job Group 'P'/CSG 7 and below but have qualified for pension or served for an aggregate of fifteen (15) years and above and the contemplated penalty is dismissal or reduction in rank or seniority, the procedure to be followed shall be the same as that of officers in Job Group 'R/' and above.

K.6 In respect of officers in Job Group 'P'/CSG 7 and below but who have not qualified for pension:

- (i) All the steps in (2) (i-iv) above will be observed and where the Authorized Officer is of the opinion that further investigation is not necessary, he will decide on the punishment to be inflicted on the accused officer.
- (ii) Where the Authorized Officer finds it necessary to carry out further investigation, the conditions specified in K.5 shall be observed.

- (iii) On receipt of the investigation report, the Authorized Officer shall on the recommendations of the Human Resource Management Advisory Committee determine whether the accused officer is culpable and decide on the penalty to be imposed.

Conduct of investigations

K.7 (1) While carrying out investigations, the Authorized Officer shall observe the following conditions:-

- (i) Constitute a team of not less than three (3) officers to investigate the matter (where the team is more than three members, the team shall consist of an odd number).
- (ii) The officers conducting the investigation shall be senior to the accused officer and should not have dealt with the case before or have interest in the case.

(2) The report of the investigation shall be submitted to the HRMAC and shall contain:

- (i) evidence collected by the team, including any statements by witnesses;
- (ii) analysis of the evidence and statements;
- (iii) a statement on whether the charges against the officer have been proved; and
- (iv) details on any matter that may affect the gravity of the case, if any.

(3) The report shall not contain any recommendation on the form of punishment to be inflicted on the accused officer.

Disciplinary Hearing

K.8 The hearing shall be done by a sub-committee of the HRMAC or a sub-committee of the CHRMAC and shall be comprised of officers senior to the accused officer who should not have dealt with the case before or have interest in the case.

(1) The panel should comprise of not less than three (3) officers. Where the panel is more than three members, the panel shall consist of an odd number.

(2) The panel shall give a notice of not less than seven (7) days to both parties prior to the hearing date.

(3) Upon request in writing, the accused officer may be given information, materials and evidence in support of the case.

(4) The parties have a right to request for adjournment.

5) A record of the proceedings of the hearing shall be submitted to the HRMAC and shall contain:

- a) a statement on whether the charges against the officer have been proved.
- b) evidence collected by the team, including any statements by witnesses;
- c) analysis of the evidence and statements; and
- d) details on any matter that may affect the gravity of the case if any.

Interdiction

K.9 (1) The powers of interdiction should be Exercised as set out in section 70 of the Public Service Commission Act. An officer may be interdicted to allow investigations to be conducted in a case where proceedings may lead to his dismissal.

(2) An officer who is interdicted shall be eligible for half ($\frac{1}{2}$) of his basic salary with full house allowance and medical benefits.

(3) An officer on interdiction should report to his supervisor at agreed intervals.

(4) Where disciplinary or criminal proceedings have been taken or instituted against an officer under interdiction and such an officer is neither dismissed nor otherwise punished under these regulations, any salary, allowances and benefits withheld shall be restored to him upon the termination of such proceedings with effect from the date the salary was stopped.

Suspension

K.10 (1) The powers of suspension should be exercised as set out in section 71 of the Public Service Commission Act under the following circumstances:

(i) when disciplinary proceedings have been instituted against the officer as a result of which, the Authorized Officer considers that the officer ought to be dismissed;

(ii) when the officer has been charged of a serious criminal offence or is found culpable of a gross misconduct which can lead to dismissal.

(iii) Where an officer is suspended from the exercise of the functions of his public office, he shall be entitled to full house allowance, medical benefits and half basic salary.

(2) An officer on suspension will be required to report to his supervisor at agreed intervals, if necessary.

(3) Where disciplinary or criminal proceedings have been taken or instituted against an officer under suspension and such an officer is neither dismissed nor otherwise punished, the whole or any salary, allowances and benefits withheld shall be restored to him upon the termination of such proceedings with effect from the date the salary was stopped.

Absence from Duty without leave or reasonable or lawful cause

K.11 (1) Where a public officer is absent from duty without leave or reasonable or lawful cause for a period exceeding twenty four (24) hours, and is not traced within a period of ten (10) days from the commencement of such absence, the officer's salary shall be stopped and action to dismiss the officer initiated.

(2) The public officer shall be addressed a 'show cause' letter through his last known address by registered post or a scanned copy sent through electronic mail.

(3) If the officer does not resume duty or respond to the 'show cause' letter within a period of twenty one (21) days, from the date of dispatch of the show 'cause letter', the case shall be referred to the respective Human Resource Management Advisory Committee for summary dismissal.

(4) When an officer has been absent from duty without permission and subsequently resumes duty, he shall not be eligible for payment of salary for the period of absence and any amount erroneously paid to him shall be recovered from his salary.

(5) In cases of delay of stoppage of salary and an officer is subsequently dismissed on account of desertion, the erroneous payment shall be recovered from the officer(s) who occasioned the payment.

Compulsory Leave

K.12 The authorized officer of a public body may, with the written approval of the Commission, send on compulsory leave for a period not exceeding thirty working days a public officer in a public body in which an investigation is being conducted, where it is feared that the officer may influence or interfere with the investigation

Appeals

K.13 (1) An officer who is dissatisfied by a decision made by an Authorized Officer may appeal to the Commission within a period of ninety (90) days from the date of the letter conveying such decision, provided that the Commission may consider an appeal that is made out of time if, in the opinion of the Commission, the circumstances warrant such consideration.

(2) The Commission shall entertain only one appeal in each case.

Reviews

K.14 An officer may apply for a review of his case within six (6) months after the decision of the Public Service Commission. The Commission may entertain an application for review out of time if, in the opinion of the Commission, the circumstances warrant it.

K.15 In the event that the Government is taken to court in matters relating to the Commission's disciplinary powers, including where the powers have been delegated, the following shall apply:

(1) Ministries/State Departments shall promptly bring to the attention of the Commission and the office of the Attorney General the filing of such court cases and forward all the relevant information as well as documents relating to the case.

(2) Ministries/State Departments shall ensure that they cooperate

(3) Court decisions shall be complied with in consultation with the Commission and the office of the Attorney General unless an order of stay has been granted by the court.

Defence of Officers in Criminal and Civil Suits

K.16 (1) When criminal or civil proceedings are instituted against an officer as a result of an act of omission by him in the course of his official duties, he may apply to his Authorized Officer for assistance in his defence. If the latter is satisfied that the officer acted in good faith in the execution of his official duties and that it is in the public interest that the officer should be defended, he shall immediately report the matter to the Attorney General, who will decide whether or not the officer should be defended.

(4) Officers who have applied for defence shall not themselves brief their private advocates and subsequently apply for Government assistance. Unless the proper procedure is followed, the Attorney General may decline to provide support to the officer. It is further emphasized that speed is of essence in reporting such cases to the Attorney General.

Civil Proceedings by Officers for Defamation

K.17 Where an officer has been defamed in respect of matters arising out of his official position, e.g. in the press or at a political meeting, it may be that the Government is also defamed by implication, and may, therefore, agree to give legal aid to the officer. Where such a case occurs, the officer may apply for legal aid through his Authorized Officer to the Attorney General. Legal aid will not be granted unless:

- (i) The Government has a substantial interest in seeing that the defamatory statement is repudiated;
- (ii) There is, in the opinion of the Attorney General, a good prospect of success in the action; and
- (iii) The consent of the Attorney General shall be obtained before proceedings are commenced.

SECTION L

LABOUR RELATIONS

Introduction

L.1 The Government shall engage Trade Unions representing public officers in negotiating Collective Bargaining Agreements. The Government and the Unions shall negotiate Collective Bargaining Agreements setting out the terms and conditions of service for the employees. The negotiations will be guided by the provisions of the Constitution, relevant legislations and the institutional framework for collective bargaining with public service unions.

Union Membership

L.2 (1) All employees may join any registered and recognized Union of their choice. However, eligibility for an employee to join will depend on the recognition agreement between the Government and the respective Union.

(2) Employees shall not be victimized for being members or participating in trade Union activities;

(3) Employees who are appointed as officials of any Union may be granted permission to carry out official Union duties;

(4) Employees are not allowed to be officials of more than one Trade Union. However, an official of a Trade Union may also be an official of a Federation to which the Trade Union is affiliated;

(5) Union meetings shall be convened to take place during the employees' free time.

Recovery of Union Dues

L.3 (1) The Government shall deduct trade Union dues from the salaries of union members and pay the monies so deducted into a specified account of the Trade Union;

(2) The Government shall deduct an agency fee of 1.5% of the monthly basic salary of unionisable employee who has resigned his Union membership and notified the employer in writing and pay the monies into a specified account of the trade union; and

(3) A copy of an employee's notification shall be forwarded to the Union for information.

Dispute Resolution

L.4 The Government will endeavor at all times to have good working relations with the Unions in order to maintain industrial harmony. However, should a trade dispute arise concerning any aspect of the employer/employee relationship, the resolution of that dispute will be as provided for in the Labour Relations Act.

Employee Participation in Strikes

L.5 An employee may participate in a strike if:-

- (i) The trade dispute that forms the subject of the strike concerns the; terms and conditions of employment or recognition of a Trade Union to which an employee is a member
- (ii) The trade dispute is unresolved after conciliation; and
- (iii) Seven days written notice of strike has been given to the Government and the Cabinet Secretary responsible for Labour by the representative of the Union.

Institutional Framework for negotiation

L.6 (1) An Institutional Framework for negotiation with Trade Unions has been developed whose objectives are to:

- (i) ensure that the collective bargaining process is compliant with the Constitution and the relevant legislations;
- (ii) identify the parties recognized by law to engage in collective bargaining;
- (iii) provide consistency and uniformity in the collective bargaining process;
- (iv) provide a platform for consultations with all stakeholders;
- (v) provide a standard period for collective bargaining across the public service; and
- (vi) promote labour relations and industrial peace.

(2) The collective bargaining in the Public Service may include salaries, allowances, benefits, and working conditions as shall be agreed upon from time to time.

(3) Labour relations shall be guided by the provisions of the Constitution and the relevant labour laws.